PAKISTAN STUDIES (PAK301)

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Lecture 1

Ideology of Pakistan

Ideology is a set of beliefs, values and ideals of a group and a nation. It is deeply ingrained in the social consciousness of the people. It is a set of principles, a framework of action and guidance system that gives order and meaning to life and human action.

Ideology emphasizes on some particular principles, ideals and blueprint for the future. It is a review of the existing political, social and economic arrangements that create consciousness based on its principles. It legitimizes or delegitimizes certain actions and philosophies. Ideology gives nation a direction and worldview and its implementation is the responsibility of the concerned people.

Ideology of Pakistan

The ideology of Pakistan took shape through an evolutionary process. Historical experience provided the base; Allama Iqbal gave it a philosophical explanation; Quaid-i-Azam translated it into a political reality; and the Constituent Assembly of Pakistan, by passing Objectives Resolution in March 1949, gave it legal sanction. It was due to the realization of the Muslims of South Asia that they are different from the Hindus that they demanded separate electorates. However when they realized that their future in a 'Democratic India' dominated by Hindu majority was not safe, they changed their demand to a separate state.

The ideology of Pakistan stemmed from the instinct of the Muslim community of South Asia to maintain their individuality in the Hindu society. The Muslims believed that Islam and Hinduism are not only two religions, but are two social orders that produced two distinct cultures. There is no compatibility between the two. A deep study of the history of this land proves that the differences between Hindus and Muslims are not confined to the struggle for political supremacy but are also manifested in the clash of two social orders. Despite living together for more than one thousand years, they continue to develop different cultures and traditions. Their eating habits, music, architecture and script, all are poles apart.

The basis of the Muslim nationhood was neither territorial nor racial or linguistic or ethnic rather they were a nation because they belonged to the same faith, Islam. They demanded that the areas where they were in majority should be constituted into a sovereign state, wherein they could order their lives in accordance with the teachings of Holy Quran and Sunnah of Holy Prophet (PBUH).

Evolution of 'Two Nation Theory'

Concept of Muslims as a Nation developed before the establishment of Pakistan. Pakistan was the product of this concept of nationhood rather than Pakistan creating a concept of nationhood. Retrospectively the Muslim nationalism emerged with the advent of Islam that introduced new principles pertinent to every sphere of life. It pledged the redemption of the humankind establishing a benign society based on Qur'anic teachings. The beginning of the Muslim nationalism in the Sub-Continent may be attributed to the first Indian who accepted Islam. The Arab traders had introduced the new religion, Islam, in the Indian coastal areas. Muhammad bin Qasim was the first Muslim invader who conquered some part of India and after that, Mahmud of Ghazna launched 17 attacks and opened the gate to preach Islam. The Muslim sufi (saints) like Ali Hejveri, Miran Hussain Zanjani etc. entered Sub-Continent. They, rejecting the vices in the Indian society, presented the pure practical picture of the teachings of Islam and got huge conversions. Qutub-ud-Din Aibuk permanently established Muslim dynasty in India that followed Sultanate and Mughal dynasties. Thus a strong Muslim community had emerged in India who had its own way of life, traditions, heroes, history and culture. Islam could not be absorbed in Hinduism. Deen-e-Ilahi, Bakhti movements, etc. created reaction amongst the Muslim ulama to preserve the pure Islamic character and save it from external onslaught. Role of Sheikh Ahmad Sirhindi and others is noteworthy. Equality and social justice inspired conversions to Islam.

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The British won over the Muslim rulers due to the industrial and scientific developments and modern war strategy. The War of Independence (1857) was a shattering setback to the Indian Muslims who were held responsible for the rebellion by the British. The Muslims were put into the backwardness with the help of Hindus. This was one of the outstanding motivations that paved the way to declare the separate identity of nationalism, the Muslim nationalism. The Muslim scholars sought to reform the teaching of Islamic law and to promote its application in a Muslim society. The prominent name among them is Sir Syed Ahmad Khan (1817-98) who awakened and guided his community well in time. His educational drive, the Ali-Garh movement, proved to be the best means of social mobility for the Muslim gentry under colonial rule.

In 1885 the Indian National Congress was founded to indicate the beginning of the Indian nationalist movement under the British. The Congress worked and helped the British rule. Sir Syed advised the Muslims not to join it because, he thought, the Muslims were not in position to involve into the anti-government activities. It has been argued that Sir Syed's fear of Hindu domination sowed the seeds for the "Two Nations Theory" later espoused by the All-India Muslim League, founded in 1906 and led to its demand for a separate state for the Muslims of India. Sir Syed argued that modern education and non-political activities might be the key to Muslim advancement. The Ali-Garh movement produced educated leadership who could protect the Muslims' rights on the Western political lines.

All India Muslim League had been founded in Dhaka to promote loyalty to the British and to protect and advance the political rights and interests of the Muslims of India. Thus the concept of 'separate electorates' was put forward to dawn a new day for the Indian Muslims.

The Two-Nation Theory served as the basis of demand for Pakistan by the Muslims in British India. There are two major nations in British India. The Muslims are not a community but a nation with a distinctive history, heritage, culture, civilization, and future aspirations.

The Muslims wanted to preserve and protect their distinct identity and advance their interests in India. They wanted to order their lives in accordance with their ideals and philosophy of life without being overwhelmed by an unsympathetic majority.

Initially, they demanded safeguards, constitutional guarantees and a federal system of government with powers to the provinces for protection and advancement of their heritage, identity and interests. Later, they demanded a separate state when neither the British nor the Hindu majority community was willing to offer those guarantees and safeguards.

Hindi-Urdu Controversy

Hindu revivalist movements turned more against the Muslims. Hindu nationalism was rival to the Muslim nationalism. The Indian nationalism forced Muslims to organize themselves politically to defend their interests effectively. After 1857, Hindi-Urdu Controversy was the major assault by the Hindus on Muslim heritage and legacy of the great Muslim Empire. Hindus were biased against Urdu as it was the Muslims' language. They demanded Hindi as the official language replacing Urdu. There were demonstrations against Urdu by the Hindus in Banaras in 1867. It was the start of the Hindi-Urdu controversy. On the very issue, Sir Syed foretold about the unstable future of Hindu-Muslim unity. Hindus struggled vigorously to replace Urdu by Hindi in the offices. This enhanced the importance of the sense of Muslim separatism.

The Muslim nationalism is manifested with the sublime principles to implement like:

1. Rule of Law, socio-economic justice, equity and fair play.
2. Equality of opportunity to all citizens irrespective of caste, sect, religion or region.
3. Religious and Cultural tolerance.
4. Respect for human dignity and rights.

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5. Protection of the rights and interests of non-Muslims and freedom to practice their beliefs and religions.

These principles are enshrined in the constitutions. We ought to work towards realization of these goals in reality and create institutions and processes that reflect these principles and values.

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Lecture 2

Ideology of Pakistan in the Light of Statements of QUAID-I-AZAM and ALLAMA IQBAL

The Development of Muslim Identity and Two-Nation Theory and Quaid-i-Azam and Allama Iqbal

The sense of nationhood developed among the Muslims before the establishment of Pakistan. Their goal was mostly to protect and promote their identity and interests and shape their lives in accord with their ideals and philosophy of life without being overwhelmed by an unsympathetic majority. They adopted the strategy to get constitutional safeguards from the British against the cruel majority of Hindus but because of the antagonistic treatment from the rivals they set the goal of a separate state. Islam had central place to their further developments.

The role of leadership is very important to put nation on the way. A good leadership infuses the qualities of awareness, consciousness, mobilization, sense of direction, and defense against the adversaries. The Muslims were lucky having such competent leadership.

Muhammad Ali JINNAH
M. A. Jinnah was a history-making leader who changed the course of history. He possessed a visionary leadership, commitment to the cause and political mobilization capacity. He was a Charismatic Leader in the real sense of the meaning.

ROLE OF JINNAH
Jinnah played a decisive role in articulating the Muslim demands and pursuing these faced strong opposition from the Hindus and the British. He started his political career in 1906 by joining the Indian National Congress. He was elected to the Legislative Council in 1909 and in 1913 he also joined the All India Muslim League (AIML). Now he was member of both the political parties. Having disagreement with Gandhi on the issue of Swaraj (self-rule), complete freedom from the British and on using extra-constitutional means, Jinnah resigned from the Congress in 1920.
His early efforts to promote Hindu-Muslim unity were materialized when THE LUCKNOW PACT (1916) was signed. The Hindus accepted the Muslim demands:

- Separate Electorate
- One-third Seats in Central Legislature
- protection of minority rights

In the Nehru Report, the accepted Muslim rights were ignored. Jinnah retaliated forcefully by presenting 14 Points in 1929. He defined Muslim identity and mobilized them with reference to Islam and convinced others that Muslims are different from the Hindus and the Congress. Islamic principles, concepts and symbols surfaced in his speeches and statements.

Jinnah used the term NATION for the Muslims of India in Feb 1935 (Legislative Assembly). He argued that the combination of religion, culture, race, arts, music and so forth make a minority a SEPARATE ENTITY. In March 1936 Bombay, he stated that the Muslims could arrive at a settlement with Hindus as TWO Nations. In 1937, he asserted that there is also a third party in India, the Muslims. In 1939, he roared that the Muslims and Hindus are two nations and they are going to live as a nation and playing part as a nation:

> **We are a nation with our own distinctive culture and civilization, language and literature, names and nomenclature, sense of values and proportion, legal laws and moral code, custom and calendar, history and tradition, aptitudes and ambitions; in short, we have our own distinctive outlook on life and of life. By all cannons of international law, we are a nation.**

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Speeches and statements: 1940-47
Jinnah believed in the force of Islam as he said that Islam is a dynamic force that can unite the Muslims. It can help to overcome the present crisis. It's a source of inspiration and guidance providing ethical foundation, a framework, social order and civilization.

Guidance & inspiration for constitution-making and Governance
He also talked of the modern notions of state, constitution, civil and political rights and democracy. He assured that constitution of Pakistan would be framed by the elected assembly.

Modern democratic and Islamic State
He gave assurance of equality of all citizens and rights and freedom to religious minorities in the new state.

ALLAMA IQBAL: POET AND PHILOSOPHER

VISION OF A SEPARATE MUSLIM STATE

Men like Allama Iqbal are born but in centuries. He was conscious of significance of Islam in lives of the Muslims. His first public appearance was in 1899 at the annual session of Anjuman Himayat-i-Islam in Lahore when he presented the poem, Nala-i-Yatim.

At initial stages Dr Iqbal was a nationalist by ideas and his poetry contained verses like Tarana-i-Hind. His poetry was a critique of the existing societal conditions. Being educated from Europe, he knew all weak aspects of the Western culture. He criticized capitalism, materialism and lack of spiritualism.

IQBAL- Focus on the conditions of the Indian Muslims

Islam can salvage the Muslims
Islam has always saved Muslim

Islam is a living and dynamic ideology that can meet modern challenges

Islam to help them to overcome their internal discord and enable them to meet external challenges

With spiritualism based derived from Islam
Ijtehad and Reinterpretation

(READ: Reconstruction of Religious Thought in Islam)

Address to the Muslim League Session, Allahabad, December 1930

> **I would like to see the Punjab, NWFP, Sind, Balochistan amalgamated into a single state as a self government within the British empire or without. This is the final destiny of the Muslims of N.W. India.**

(Dr Iqbal's verses may be quoted) web site may also be visited:

http://brain.brain.net.pk/~wisetech/50/bio/quaid.htm
http://brain.brain.net.pk/~wisetech/50/bio/iqbal.htm

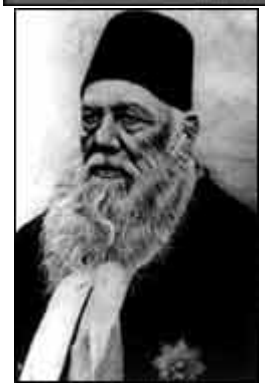
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Lecture 3

The Aligarh Movement



The War of Independence 1857 ended in a disaster for the Muslims. The British believed that the Muslims were responsible for the war of 1857 and therefore, they were subjected to ruthless punishment and merciless revenge. The British had always looked upon the Muslims as their enemies because they had ousted them from power. With the war of 1857 this feeling was intensified and every attempt was made to ruin and suppress the Muslims forever. Thus the Mughal rule came to an end and the sub-continent went directly under the British crown.



Sir Syed Ahmad Khan made modern education the way to progress

After the Muslim rule, the new rulers, the British, implemented a new educational policy with drastic changes. The policy restricted Arabic, Persian and religious education in schools and made English as the only medium of instruction as well as the official language in 1835. A wrong attitude of everything modern and Western, and disinclination to make use of the opportunities opening under the new regime was created among the Muslims. This tendency, had it continued long, would have proved disastrous for the Muslim community.

Such were the days of despair and despondency when Sir Syed appeared on the horizon of Muslim India to rescue them. Sir Syed had the conviction that regeneration of the Indian Muslims had not at all visualized that mankind had entered a very important phase of its existence, i.e. an era of science and learning which was the source of progress and prosperity for the British. Therefore, modern education became the pivot of his movement for the regeneration of the Indian Muslims, which brought a complete orientation in their lives. He tried to transform Muslim minds from medieval outlook to a modern one.

Hali and Shibli were also associated with the Aligarh Movement.



Sir Syed's first and foremost objective was to modernize the Muslims following the Western cultural values that could create friendly atmosphere for the two communities. He motivated his community to learn the Western philosophy and English literature to get along with the ruling people.
Therefore, in order to fulfill this desire he started the Aligarh movement. He had two immediate objectives in view:

1) To remove the state of tension between the Muslims and the British government, and

2) To induce them to get jobs and other facilities under the new government.

To him, this was the only way for the Muslims to prosper.

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The ideas of Sir Syed may be summed up as following:

1. To create an atmosphere of mutual understanding between the British government and the Muslims
2. To motivate the Muslims to learn Western education
3. To persuade Muslims to abstain from agitational politics

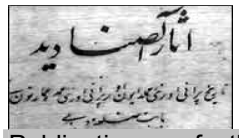
Fortunately, Syed Ahmad Khan was able to attract a number of sincere friends who shared his views and helped him. Among them were well-known figures like Nawab Mohsin ul Mulk, Nawab Viqar ul Mulk, Hali, Shibli, Nazir Ahmad, Chiragh Ali, Mohammad Hayat, and Zakaullah. All these personalities advocated the cause set by Sir Syed Ahmad Khan. Some English professors like Bech, Morison, Raleigh and Arnold also contributed greatly in building up the Aligarh college into a first rate institution.



Syed Ahmad launched his educational movement by setting up Gulshan School at Muradabad - 1859; Victoria School at Gazipur in 1863; Scientific Society for the translation of English works in the native language, Urdu, at Aligarh in 1864; Aligarh Institute Gazette imparting information on history - ancient and modern, science of agriculture, natural sciences, physical sciences and Advanced Mathematics in 1866; Committee Striving for the Educational Progress of Muslims - 1870; Mohammedan Anglo-Oriental School (MAO) at Aligarh in 1875 at the pattern of English public schools and later raised to the level of college in 1877 and university in 1920; Mohammedan Educational Conference (1886), which met every year to take stock of the educational problems of the Muslims and to persuade them to get modern education and abstain from politics; it later became a political mouthpiece of the Indian Muslims and the forerunner of the All India Muslim league.



Besides his prominent role in the educational uplift of the Muslims, Syed Ahmad Khan's writings played important role in popularizing the ideals for which the Aligarh stood. His Risala Asbab-i-Baghawat-i-Hind in 1858; and other writings as Loyal Mohammedans of India; Tabyin-ul-Kalam and Khutbat-i-Ahmadiya rooted out the misunderstandings about Islamic teachings and helped create a cordial relation between the British Government and the Indian Muslims and also helped to remove the misunderstanding about Islam and Christianity.



Publications of the Aligarh Movement

It was this platform from where Syed Ahmad Khan strongly forbade the Muslims to join the Hindu dominated political party, the Indian National Congress. He regretted the Urdu-Hindi controversy initiated by Hindus and predicted that both the nations could no longer live together. He stood for reserved seats for Muslims and also promoted the idea that Hindus and Muslims are two distinct nations, which led to the Two Nation theory.

Syed Ahmad Khan's Aligarh Movement played a significant role to bring about an intellectual revolution among the Indian Muslims. Thus Aligarh Movement succeeded in achieving its major objectives and boosted up the depressed Muslim community to the real status of nation.

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Lecture 4

Sir Syed Ahmad Khan and His Contributions

The great emancipator of the Indian Muslims Sir Syed Ahmad Khan was born at Delhi in 1817. This is the period when the great Mughal Empire was close to a complete collapse. Sir Syed's family had already joined the East India Company and his maternal grandfather served in Iran and Burma under the British government. Sir Syed got interest in English from his maternal family. SM Ikram writes, "For this insight into the affairs of the state and first contacts with Western learning and civilization he was indebted to his maternal grandfather…" (S. M. Ikram, Modern Muslim India, p.18). Sir Syed was very healthy by birth and his grandfather remarked: "A Jat has been born in our family." (Ibid., p. 19) The death of Sir Syed forced him to join the British as head clerk in 1839. The death of his brother made him serious and energetic to face the neuroses of life courageously. Another event that changed him entirely was the War of Independence in 1857. In 1841, he passed examination and became sub-judge. At the eve of the War of Independence he was performing the duties as sub-judge in Bijnore. He established educational institutions and after coming at Aligarh he rejuvenated his aspirations to work for the depressed Muslims of the Subcontinent. He devoted his entire life for this purpose to bring the Muslims close to the British. He died on March 27, 1898 and was buried in Aligarh.

His Services

He took responsibility of the Indian Muslims when they had been thrown in backwardness, depression andn humiliation. The British held them criminal of the War while the Hindus had won the British being anti-Muslim force. In such environment, Sir Syed guided his community to rejoin the life. To Dr Qalb-i-Abid, "Sir Syed Ahmad Khan was among a very few leaders produced by Muslim India, who like Mohammad Ali Jinnah made a tremendous contribution in guiding the destinies of the Indian Muslims." (Dr Q. Abid, Muslim Struggle for Independence, p. 11.)

Sir Syed and Politics

In the political arena, Sir Syed carved numerous successes; he eradicated misunderstandings between the Muslims and the British infused due to the past particular incidents. Awakening among the Muslims about the political ups and downs and co-existence in the presence of other nations in India was another contribution of Sir Syed. He motivated the Muslims to absorb the modern education of the West because this was the very motive of the Western expansion in the world. He visualized the bright future of the Muslims if they engaged themselves in the Western learning.

Sir Syed won the British confidence and cordial relationship by saving their lives during the War of Independence. He utilized this relationship for the betterment of the Muslims. It was a subtle situation because the government had put the War crimes on the Muslim shoulders and assaulted their every aspect of life: "These events were a trauma for the Muslims; …the methods used by them shocked the civilized world. The detestation of Delhi as a centre of Muslim culture was horrendous; Bahadur Shah Zafar…was exiled to Rangoon; Lt. Hodson shot three Mughal princes and later 24 princes were tried and executed; a vast ocean of blood there was; Some Muslims were shot dead and their dead bodies were thrown into the river Jamna…" (Ibid., p. 14). All Muslims were ousted from land, property and employments that made them third class citizens of India. This created revengeful sentiments among the Muslims who detested British, their culture and civilization. Sir Syed was of the view that British were a civilized, educated, wise and disciplined nation and occupied India with the new war strategy and munitions that could not be matched by the locals and particularly by the Muslims. Therefore at the juncture the Muslims should mould themselves according to the pace of time to avoid more disaster.

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Sir Syed published Loyal Mohammedans of India and Risala Asbab-i-Baghawat-i-Hind that helped both the nations to redress their grievances. In 1885 the Indian National Congress was founded but Sir Syed warned the Muslims from the sinister aspirations of the Hindus. Another factor was that he intended the Muslims to abstain from the politics that could result in friction with the ruling nation.

Urdu-Hindi Controversy

Urdu grew as common language of all the Indians regardless of origin or religion but in 1867 the Benarsi Hindus started campaign to replace Urdu by Hindi. To gain the objectives, they declared numerous organizations, which discouraged Sir Syed who said to Shakespeare that since now both the nations could not live together. Later the followers of Sir Syed tried their level best to save Urdu language. Mohsin ul Mulk was the outstanding person who organized the Muslims in defense of Urdu.

Muslims-as a Nation

Sir Syed used the word 'nation' for the Muslims. Some writers criticize that he declared Hindus and Muslims one nation. But as a matter of fact, he advocated the Hindu-Muslim unity that meant 'the working relationship' between the two nations as once he said: "Hindus and Muslims should try to be of one mind in matters which affected their progress." He favored separate electorate for the Muslims in 1883 saying that the majority would override the interests of the minority. (P. Hardy, pp. 136-37)

United Indian Patriotic Association

In 1888, he set up the Patriotic Association to meet the propaganda of the Congress. Muslims and Hindus joined the Association. It advocated the Muslims' emotions.

Mohammedan Defense Association

In December 1893, Sir Syed founded the Association. Its main purpose was to protect the political, religious and social rights of the Muslims.

Sir Syed was great because he contributed greatly to the Muslim struggle for identity. Otto von Bismarck served the German nation with the help of all government sources but Sir Syed did the same without all this. To Khalid Bin Sayeed, "Many tributes have been paid to Sir Sayyed, particularly by modern educated Muslims for being daring enough to put forward such views in an age which was by no means liberal or tolerant." (Dr Khalid Bin Sayeed, Pakistan, the Formative Phase, p. 17).

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Lecture 5

Major Political Developments 1857-1918

The year 1857 brought decline to the Muslim rule in India. Muslims and Hindus participated in the War of Independence but the British held only Muslims responsible for the rebellion. The Muslims were persecuted ruthlessly and left at the mercy of time. The post war era was disastrous for the Muslims but some personalities emerged on the national scene and played excellent role to guide their people in this critical situation. The Central Mohammedan Association of Justice Amir Ali Syed and the Aligarh movement are very prominent in this regard. Their efforts for revival of the self-identity and political positioning in the Indian society enabled them to face any challenge in the future.

Some important issues have already been discussed in the previous lectures. So a brief reference to events in historical context may be given:

- Decline after the 1857 Uprising
- Sir Syed and his colleagues' efforts for revival
- Removal of misunderstanding between the Muslims and the British
- Educational movement or acquisition of modern knowledge and English
- Hindi-Urdu Controversy was the issue that unearthed the hatred and enmity of Hindu community towards the Muslims.
- Formation of the Congress was a method to incorporate the Muslims in Hinduism. It popularized the agitational politics that Muslims could not afford because they were still recovering the past gaps.
- Hindu Revivalist movements mostly targeted the Muslims that accelerated the pace of widening the gulf between the two nations.

Events Since the Beginning of 20TH Century

1. Partition of Bengal, 1905
2. Simla Deputation, 1906
3. Formation of the Muslim League, 1906
4. Changes in the Goals of the Muslim League, 1913
5. Lucknow Pact, 1916

1: Partition of Bengal: 1905

United Bengal's area covered 189,000 sq. miles with 80 million populations. Dr Abdul Hameed writes in his book, Muslim Separatism in India, that the partition was imperative even if Curzon had not initiated it. A Lt. Governor had problems in looking after the eastern areas. Mainly Muslim suffered because of the rotten administration by the British. Before 1905, many proposals of partition of Bengal had been under consideration but Lord Curzon decided to practicalise this administrative scheme. East Bengal became incidentally a Muslim majority province having 13000000 out of 31000000. West Bengal was a Hindu majority province. Muslims were very happy on the partition as this had enabled them to promote their life conditions. It was rightly an opportunity for compensation. The Muslim community supported it strongly but Hindus retaliated furiously saying it the division of motherland. The Congress joined the anti-partition movement. They started widespread agitation, violence and boycott of foreign goods. The main reason of Hindu protest was that they had loosened grip over the eastern parts.

Annulment of the Partition on 12 December 1911

The British government revoked the partition to avoid trouble on the visit of King George V. The Muslims were disappointed by the government response to the violent strategy of protests adopted by the Hindus.

2: The Simla Deputation 1906

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In fact Simla Deputation was in line with a kind of thinking that was developing amongst the Muslims during that time i.e. they had certain interests and they must stand up to protect their rights and unless they do that that objective would not be achieved. The Simla Deputation of 1906 was the first systematic attempt on the part of the Muslims to present their demands, to the British government and to seek their acceptance. The Simla deputation comprised 35 Muslims from all over India. It was a galaxy of Muslims leaders from all the provinces, from one end of India to the other and it had Muslims of all background. Therefore, when in 1906, this deputation called on the Viceroy, it was the most representative Muslim delegation. This delegation was led by Sir Agha Khan and Nawab Mohsin ul Malik served as a secretary and this delegation met the Viceroy in Simla that was why it was called as Simla Deputation. The memorandum which they presented was a kind of demands which were the uppermost in the minds of the Muslims at that time. The delegation emphasized that the Muslims should not be viewed simply in numerical terms but they should take into account their historical importance and the kind of contribution the Muslims had made to British India and keeping in view that importance they should work towards accommodating their demands. The delegation emphasized that democratic principle should be introduced keeping in view the peculiar conditions and circumstances of India. The diversity, the fact that there different kinds of people living in India and the fact that the Muslims consider themselves to be a separate entity, all these things had to be taken into account because the India was not a homogenous amalgamated or monolithic political identity. It was a political identity comprising diversity, divergence in view, divergence in outlook and when you introduce some kind of system then these realities had to be accommodated. In view of this submission they presented some demands:

- Representation more than their population because of their importance.
- Separate electorate
- Reservations of Muslims seats in government jobs.
- Special share in Municipal or district boards University senates and syndicates
- Muslim representation in Viceroy Executive Council.
- Muslim University at Aligarh.

The Viceroy was sympathetic towards the demands. It encouraged the Muslims to launch struggle for their rights parallel to the Indian National Congress but it required an organized platform.

3: Formation of the Muslim League in Dhaka: December 30, 1906

Time had come to formally organize the Muslims after the success of the Simla Deputation. The Muslim leaders desired to create a permanent political forum. After the meeting of the Mohammedan Educational Conference, the Muslim leaders met to set up the All India Muslim League. Wiqar-ul-Mulk chaired the meeting. Nawab Salimullah proposed Muslim League and Hakim Ajmal Khan and Maulana Zafar Ali Khan seconded.

In the Karachi session Dec. 1907 its constitution was approved and in March 1908 at Aligarh, Agha Khan was formally elected its president.

London Branch: May 1908

Justice Amir Ali Syed organised a branch of Muslim League at London and responded effectively to the misunderstandings and conspiracies of the Hindus against the Muslims.

GOALS:

1. Protection and promotion of political rights and interests of the Muslims.
2. Cooperation with other communities without prejudice to the above goal.
3. Fostering sense of loyalty, among the Muslims, towards the government.

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4: Change in the Goals of the Muslim League 1913

Important developments occurred during the first decade of the 20th century like annulment of the Partition of Bengal and Western aggression towards Muslim countries, Balkan wars, Libya-Italy war, Demolition of the mosque in Kawnpur (1913), etc. weakened Muslim faith in the British. This led to a major drift in the Muslim League's policy. In 1913, the League changed its goals:

- Self government under the British Crown keeping in view the peculiar conditions in India.
- Good relations with other communities' cooperation with any party working for similar goals.

This change brought the ML and Congress closer. In this way the era of cooperation between Hindus and Muslims set in. The role of the Quaid-i-Azam is highly noteworthy to bring the Congress and the Muslim League to the table. He joined the Muslim League in 1913.

5: Lucknow Pact, 1916

The Lucknow pact was the product of Hindu-Muslim unity envisaged by M. A. Jinnah. In December 1915, the ML and Congress met separately in Bombay. Both the parties set up committees for making a scheme for constitutional changes in consultation with other political parties.

Role of the Quaid-i-Azam

Jinnah did a lot to unite the two nations along with the recognition of the rights of Muslims. Meeting of both parties held at Lucknow in 1916. The constitutional proposals were approved:

1. One Third seats for Muslims in the Imperial Legislative Council.
2. Separate Electorate
3. Half members of the Executive Council to be elected by the Imperial Legislative Council.
4. Commissioned ranks of the army for Indians.
5. Expansion of Provincial Legislative Councils.
6. Half members of the Governor's Executive Council be elected by Provincial Legislative Council
7. Weightage to minorities in provinces.

Gains from Muslim Point-of-view

1. Separate Electorate
2. One Third Muslim seats in Central Legislature.
3. Unofficial bill, if opposed by three-fourth members of a community, it will not be passed.

August 20, 1917 Announcement by British Government

Secretary of State Montagu promised for:

1. Greater association of Indian in all branches of government.
2. Responsible government
3. Induction of Indians in the commissioned ranks.

Conclusion:

The historical struggle of the Muslims confirmed their identity. They organized their political party to address the demands. They also got recognition by the Hindus as a separate nation. The British accepted their role in the political domain.

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Lecture 6

The Khilafat Movement

The Khilafat movement was a religio-political movement launched by the Muslims of British India for the retention of the Ottoman Caliphate and for not handing over the control of Muslim holy places to non-Muslims.

Turkey sided with Germany in World War 1. As it began to lose the war, concerns were expressed in India about the future of Turkey. It was a peak period from 1919 to 1922 casting demonstrations, boycott, and other pressure by the two major communities, the Hindus and the Muslims. Being brothers, the Indian Muslims realized their religious duty to help the Muslim country. It was the extra territorial attachments based on Islam. Another factor same to the first was that the Indian Muslims considered Ottoman Caliphate a symbol of unity of the Muslim world as Ummah.

Goals:

1. Ottoman Khilafat should be kept intact.
2. Territorial solidarity of Turkey be preserved.
3. Control of holy the places should not be given to non-Muslims.

Dimensions:

The writings of the Muslim intellectuals provoked the sentiments for the preservation of Khilafat and retention of the Muslims control of the holy places. The Muslims journalism played a vital role to steer the direction of the struggle. Zamindar of Zafar Ali Khan, Comrade and Hamdard of Maulana Muhammad Ali Jauhar, and Al-Hilal of Maulana Abul Kalam Azad etc. were the prominent newspapers and magazines which performed their duties to express their resentment. The Allies imposed humiliating terms on vanquished Turkey.

Protests in India:

All India Khilafat Committee was formed at Bombay in July 1919. The first Khilafat Conference at Delhi in November 1919 was arranged in which the Congress leaders like Gandhi and Nehru participated. In this way, the major political parties joined hands to assault the injustice with the Muslim community. These steps were announced:

- No participation in victory celebrations.
- Boycott of British goods
- Non Cooperation with the Government

The second Khilafat Conference (Amritsar) was held in Dec. 1919. Maulana Muhammad Ali and Shaukat Ali joined the session after being released from prison. In Jan. 1920, M. A. Ansari led a delegation to Viceroy while Maulana M. A. Jauhar to Europe. The Khilafat Committee decided to start non-cooperation in collaboration with the Congress in May 1920.

Rowlett Act, 1919

Rowlett Act was a black law introduced in India. To the law, the government got authority to persecute any Indian and the arrested had no facility of legal assistance and right to appeal just as the 'Lettres de Cachet' in France before the French Revolution. Jinnah resigned from the central legislature as a protest.

Jallianwala Bagh Incident, April 1919

The people gathered in Jallianwala Bagh at Amritsar but General Dyer opened fire to disperse the throng that cast a huge human casualties (379). It is considered one of the great tragedies in India. In 1940, by killing Governor Punjab, Sir Michaal O' Dayer, 'Ram Muhammad Singh Azad' got revenge of the Indian massacre.

The Nagpur Session of the Congress (Dec. 1920) approved non-cooperation with Government but Jinnah opposed and left the Congress because he was against the use of extra-constitutional means of protests.

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Non-Cooperation:

- Return Titles.
- Boycott of courts and educational institutions.
- Resign from jobs.
- Later resign from police and military jobs.
- Refusal to pay taxes.

Khilafat Conference, Karachi, July 1921

In the session the participants expressed their loyalty to Turkish Sultan. They decided to continue the agitation and supported Attaturk to expel foreign forces from Turkey.

Hijrat Movement 1920-21

The Indian ulama (religious leaders) declared India 'Darul Harab.' Darul Harab means the place (country) where Muslims are not allowed to perform their religious practices. In the said situation, the Muslims should migrate to the nearest safe place. The ulama issued verdicts to go to Darul Islam, Afghanistan. There was an impression that King of Afghanistan would welcome them. So the migration took place at large scale. Initially Afghans welcomed them. Later, they closed the border and pushed the migrants back to the Indian territories. It resulted in loss of lives and money. Many died during this mission. Some went to Soviet Union from Afghanistan because they had nothing in India now.

End of the Movement

Moplah Revolt Malabar Coast, near Kalicut

Moplahs were the descendents of the Arab Muslims settled in the Sub-Continent even before the arrival of Muhammad Bin Qasim. In August 1921, they revolted against Hindu landlords whose treatment was very brutal with them. Later this clash changed as Moplahs versus the Police and Hindu. This embittered the Hindu-Muslim relations.

There was an increase in violence day by day and the Chorachori Incident (UP) in February 1922 worsened the situation. The Congress volunteers set a police station on fire and 21 policemen were killed. Gandhi suddenly called off the movement.

Developments in Turkey

In 1922 Attaturk emerged as a national leader and restricted powers of Sultan. Next he was appointed Chief of the state by Grand National Assembly. In March 1924, Khilafat was abolished. This caused a widespread resentment among the Indian Muslims. They sent delegations to Turkey but failed to achieve their objectives.

Conclusions:

1. It was re-affirmation of the reality that religion is a mobilizing force and especially Islam has mobilization capacity to organize masses.
2. It was the movement launched on the basis of extra-territorialism. Later, no such movement but Pan-Islamic sentiments continued.
3. It resulted in the sufferings of the Muslims
4. Hindu-Muslim unity proved short-lived.

Reactivation of the Muslim League and other Muslim organizations to restart their activities as a separate nation was the great outcome.

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Lecture 7

Muslim Politics in British India: 1924-1935

1. Delhi Muslim Proposals
2. Nehru Report
3. Quaid-i-Azam's Fourteen Points
4. Simon Commission
5. Round Table Conferences
6. Constitutional Proposals

Backdrop:

The Khilafat movement brought Hindu-Muslim communities to cooperation. The leaders made the efforts to revive harmony for preparing constitutional proposals.

1: Delhi Muslim Proposals: March 1927

Important Muslim leaders on the initiative of the Quaid met in Delhi to discuss constitutional and political issues. The major demands were:

- Punjab and Bengal: statuary Muslim majorities
- No Weightage in provinces
- Sind to be separated from Bombay
- Constitutional Reforms in NWFP
- One-third seats for Muslims in Central Legislature
- On communal issues, no law will be passed if three-fourth members of the concerned community oppose it.

If these demands are accepted, they will give up 'separate electorate.' Subsequently, the Muslim League was divided in the Punjab, Shafi League and Jinnah League. Sir Muhammad Shafi opposed Jinnah on the issues:

- Separate electorate
- Attitude towards the Simon Commission. Jinnah continued his unremitting efforts to promote Hindu-Muslim unity.

2: The Nehru Report: 1928

The main objective was to constitute proposals for the Indian Constitution. The Congress called All Parties Conference that appointed a 10-member committee in May 1928 under the Chairmanship of Motilal Nehru and Secretary ship of Jawaharlal Nehru.

Recommendations that threatened Muslim interests are:

- No Separate electorate
- No One-third seats for Muslims in Central Assembly
- No reservation of seats for Muslims in Punjab and Bengal. In Hindu- majority provinces, the Muslims may be given seats according to population
- Sind to be made a province if it can bear its expenses. Balochistan, NWFP were accepted to be given constitutional status on certain conditions.

Quaid-i-Azam tried to get amendments in the Report in the All Parties Conference in Calcutta but did not succeed. This is the very moment when Jinnah remarked, "it is parting of the ways." He presented the 14 points as a Muslim leader.

3: Jinnah's Fourteen Points: 1929

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1. Federal system with residuary powers with the provinces
2. Provincial autonomy.
3. Separate electorate for Muslims.
4. Effective representation to minorities in the provinces but the majority should not be reduced to minority
5. One-third representation of Muslims in Central Legislature.
6. One third Muslim representation in cabinets.
7. No changes in the boundaries of the Punjab and Bengal that would adversely affect Muslim majority.
8. Religious freedom to all.
9. No law will be passed if three-fourth elected members of a community declare that it is against their interests.
10. Sind to be made a separate province.
11. Constitutional Reforms in NWFP and Balochistan.
12. Muslim representation in govt. jobs.
13. Constitutional safeguards for Islamic culture and civilization, education, language, personal laws and Muslim institutions. Government should provide financial assistance.
14. No constitutional amendment unless all constituent units of the federation agree to it.

These points reflected the aspirations of every Muslim living in India.

4: The Simon Commission:

The British government sent a commission to seek the opinion of Indians on the future shape of constitutional arrangements. It arrived in India in 1927 and it published the report in 1930. Most political parties boycotted it. It presented its report containing several constitutional proposals:

- Federal system of government with strong centre
- Two Houses.
- Abolition of Dyarchy system in provinces
- More powers to provincial governments.
- Governor not to interfere in day to day affairs.
- Constitutional changes in NWFP

5: Roundtable Conferences: 1930, 1931, and 1932

First Session of the Conference
In the first session, a number of prominent Muslims like M. A. Jinnah, Sir Shafi, Maulana M. A. Jauhar, Zafarullah Khan participated. They emphasized federalism, self-government, safeguards for minorities, separate electorate, preferential representation in central legislature, secure majorities in Punjab and Bengal.

Second Conference
Maulana M. A. Jauhar had died after the first conference. Iqbal, Jinnah and others participated in the second conference. Gandhi represented the Congress. The key issues of the session were 'Federation' and 'Minorities.'

The Communal Award, August 1932

Prime Minister Ramsay MacDonald announced the Communal Award:

1. Separate electorate for all minorities of India.
2. Weightage to minorities
3. No Muslim majorities in Punjab and Bengal as was followed in Lucknow Pact

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4. One third representation for Muslims in Central legislature
5. One fourth representation for Muslims in services
6. Sind to be made a province

Poona Pact, September 1932

The Congress expressed strong reaction against the right of separate electorate to the Indian minorities, especially to low caste Hindus whom Gandhi named Harijan (sons of God). Dissonance in Gandhi is conspicuous that he observed fast unto death on the right to the 'sons of God.' An agreement with low caste to surrender the separate electorate right was concluded to save Gandhi's life.

3rd Roundtable Conference: Nov. 17-Dec. 24 1932

The main issues had been discussed in the first two conferences and now the rest of them were to be discussed. It was poorly attended conference. Quaid did not participate despite living in London. Gandhi did not attend as he had been detained.

The conference brought no change in party positions and widened Hindu-Muslim gulf.

White Paper on Constitutional Proposals: March 1933

The British government issued a small document in the form the White Paper. It included detail of working basis of the Indian constitution with Dyarchy in the centre and full responsible governments in the provinces.

Government of India Act, 1935

Approved by the King: August 1935

Despite these efforts the communal problems could not be settled as satisfactory to the nations living in India particularly the Muslim. Therefore the key issues remained unchanged:

- Hindu Muslim Relations
- Failure to arrive at settlement
- Muslim demands transmuted from safeguarding rights to complete independence---Pakistan.

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Lecture 8

ALLAMA IQBAL's Presidential Address December 1930

Dr Allama Muhammad Iqbal ranks amongst the Muslim intellectuals who left a deep impact on history. He inspired Muslims of the Sub-Continent and beyond. He infused a moving spirit and identity in the Indian Muslims. He presented a framework of their political future and talked how that would help to achieve the goal of Ummah. He presented a vision and dream in his Allahabad Address.

1: Background

The Hindu-Muslim question had great importance and stood crucial to British Indian history after 1857, especially in the 20th century. To Muslims, the key issue remained 'separate identity.' They tried their level best to make the rival nations understand that the Muslims are a separate nation having different culture and civilization, interests and rights. The Two Nations theory could not fascinate the Hindus and the British peoples because they believed in 'territorial nationalism.' The Hindus desired to absorb them in their majority but they could not face the arguments of the Muslim intellectuals. By 1930, Muslims had developed a sense of identity and political demands. Iqbal delivered his Presidential address in this background.

Iqbal's stay in Europe, 1905-08, helped to crystallize his thoughts. He returned to India in 1908 and started work on the roots of Muslim decline and the mechanism to uplift the Muslims. He reminded them to follow the teachings of the Holy Prophet (PBUH) practically as the ideal leader. He emphasized on the ideals, teachings and principles of Islam. He sought salvation through Islam. He was awarded with many prominent social positions:

- Title of Sir was conferred in 1922
- Member Punjab Legislative Council (1927-1930)

He delivered lectures on Islam in Aligarh, Hyderabad and Madras (1928-29). At Allahabad, he presided over the meeting and delivered his famous address.

The Address, December 1930

Iqbal presented a review of the political and social situation of India and solution of the ills befalling India. He evaluated the importance of role of Islam in the lives of Muslims of British India. He said that the European view of duality of religion and state does not apply here in the Indian society. Rejecting the secularism he said, religion is not a totally personal affair.

He explained that Islam offers an ethical order, socio-political structure, legal framework, code of life, culture and civilization. It is a living, dynamic force that has a profound impact on the lives of Indian Muslims. With the force of Islam the scattered and disoriented people have been turned into an organized force.

The Muslims are not willing to submerge their religious individuality. They have lack of trust, fear of domination from Hindus. If the British want any sort of internal harmony it would be impossible unless the communal question is settled. It's historical reality that India is a continent inhabited by diverse people. No political arrangement may be acceptable without recognizing this reality.

- If the Muslims have an opportunity to develop in accordance with their Islamic civilization and tradition, they would be willing to sacrifice their lives for India.
- Federalism cannot succeed without recognizing the national identity of the Muslims.

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- Territorial redistribution of British India on the basis of religion has become a need of time.
- Punjab, NWFP, Sind and Balochistan be amalgamated into a state, self government within the British empire or without it. The formation of such a consolidated North Western Muslim state appears to be the final destiny of the Muslims, at least of North West India. To India, it will offer peace and security due to internal balance of power.
- Islam is a people building force in India that has given moral consciousness and political identity to the people.

Importance

Iqbal's address is a forceful and logical presentation of the Muslim case in India. Why should they be treated as a political entity rather than a minority?

- Territorial adjustments will enable the Muslims to develop themselves in accordance with their ideals and serve the cause of Ummah.
- Redistribution of territory developed later on concept of Muslim homeland.
- He further expressed these ideas in LETTERS TO JINNAH from May 1936 to November 1937. He talked of a separate federation of Muslim provinces. The North Western India and Bengal can be considered as entitled to self-determination like other nations in India and outside. Shariah's development is impossible without a free Muslim state or states. He advised the Muslims to be above self-interest and devote themselves to Islam.
- In difficult times, Islam has saved the Muslims.
- Faith, culture and historical traditions are more important than patriotism.

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Lecture 9

Muslim Politics and Chaudhry Rahmat Ali

Intellectuals give lines of movement, leaders act upon and the masses prove good soldiers and this way nations accomplish their achievements. Rahmat Ali was one of the eminent scholars who made a significant contribution to the movement for the establishment of Pakistan. He was conscious of Muslim identity and outlined proposals for the partition of India for the sake of Muslims. He was the man who coined the name, PAKISTAN, for the Muslim state. When he first presented his proposal for a Muslim state, nobody took it seriously.

The Muslim intellectuals and leaders were concerned about the future of the Muslims in India. They ensured a secure future for Muslims. For this purpose they worked out various proposals for securing a homeland. Rahmat Ali becomes relevant here.

Biographical Sketch

Ch. Rahmat Ali was born in Hoshiarpur district in 1893. Traditionally he did his B.A. from Islamia College, Lahore. He did the private and government jobs for some time and then left for Cambridge University for higher education.

He was involved actively in the activities for the protection of rights of the Indian Muslims along with some other students at Cambridge University. His activism goes back to his student days in Lahore when he talked of separate state for Muslims of India.

Rahmat Ali's Views

He said that North Western areas are Muslim majority ares. We will not only keep these majorities but will turn them into a Muslim state. Muslims should get rid of Indianism, it is better for Muslims and Islam.

In his writing, NOW OR NEVER (January 1933), he proposed the name of Muslim state, PAKISTAN.

P	Punjab
A	Afghania NWFP
K	Kashmir
S	Sind
TAN	Balochistan

INDIA cannot be described as a state/country or home of single nation. This state did not exist as one political entity before the advent of the British. The Muslims are a distinct nation who has maintained its identity throughout. They are a separate nation. They have as much right to live as the Hindus. Pakistan should be separated from the rest of India. He further said that the conflict between Muslims and Hindus is not religious, sectarian or economic but an international. The Muslims are striving for survival; Hindus are trying for domination over the other nations living in the Sub-Continent particularly the Muslims.

He established the Pakistan National Movement in 1940. He began to talk about Bengal and Hyderabad as Muslim areas and separate states. Bang-i-Islam would comprise of Bengal and Assam and Osmanistan of Hyderabad Deccan.

He visited Pakistan in 1948 but the atmosphere of the motherland did not suit him and so he returned to Cambridge. He died there on 11 February 1951.

His Contribution

It is the ever-shining contribution of Rahmat Ali that he coined the name of the Muslim state. He said that being nation, the Indian Muslims deserved a separate homeland. He gave the future lines to the Muslims considering Islamic thoughts universal and true in comparison with the contemporary isms. When the Lahore Resolution was passed, it was instantly described as Pakistan Resolution. It, the division of India, was the solution of Hindu-Muslim question but Rahmat Ali proposed this long before the Lahore Resolution.

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Lecture 10

The Congress Ministries-- Policies towards Muslims

Topics:
1. Elections
2. Provincial Governments
3. Their Policies
4. Muslim Response

Government of India Act, 1935:
The Government of India Act, 1935 was not fully promulgated but the only provincial part was introduced in the country. Muslim League and the Congress criticized it but agreed to contest provincial elections.

The 1937 Elections:
The elections of 1937 were held with the restricted franchise and separate electorate. The Congress projected itself as an all-India force representing all religions and factions of the society. The Muslim League contested for the Muslim seats. There was a tough competition from the other Muslim organizations. The elections were completed in February 1937. The Congress got majorities in five provinces, Madras, U.P., C.P., Bihar, and Orissa. It emerged as the largest party in Bombay and won 704 out of 1585 general seats.
The Muslim League performed poorly in the elections and got only about 21 percent of Muslim seats without winning majority anywhere, Bengal, Punjab, NWFP, and Sind. It was mostly due to the organizational problems and opposition by local Muslim groups.

Formation of Provincial Governments:
In July 1937, Congress formed governments in 6 provinces. In NWFP, Khudai Khidmatgar and Congress formed a coalition government. In the Muslim majority provinces, the Muslim League could not form the governments. The Muslim League desired to be in government in the U.P. but the Congress consented to a conditional support:

1. Dissolve AIML Parliamentary Board
2. AIML members not to function as a separate group
3. AIML members to express allegiance to the Congress

Definitely the above-mentioned terms were a device to subvert the existence of the Muslim League. Therefore, no agreement was possible on this issue.

Policies of the Congress Governments: (July 1937-Nov. 1939)
First all Congress governments in the provinces launched anti-Muslim drive basically to exclude the ML and other Muslim organizations from the government making process. The Congress leaders had come to know that the ML had got roots in the masses. They started 'Muslim Mass Contact' movement to defame the ML in their favour. They were making cultural and educational policies that promoted the Hindu culture and symbols in the name of Indian culture. They introduced Banda-Mataram anthem from Annandmath in the institutions and offices etc. The Hindi language was given top most importance in their policies. Wardha Educational Scheme was to convert Muslims into Hindus through primary educational literature. Projection of Hindu heroes like Gandhi and distortion of Muslim history became their moral creed. They followed the policy of discrimination in services or new recruitment for jobs.

The Congress ministries adopted overall negative and cruel attitude, especially towards the Muslim activists. This unjust treatment compelled the Muslims to be disciplined in every sphere of life.

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Muslim Response:

The Muslims were well aware of the theocratic inclination of the Hindu people. They arranged a close monitoring of the government. They publicized their policies and raised the issues. The mobilization of Muslims on these matters required keen probe to collect the original facts of the Hindu atrocities.

The Pirpur Report:

On March 28, 1938, the Council of ML appointed an eight-member committee under the presidentship of Raja Syed Muhammad Mehdi of Pirpur that presented its report on, November 15, 1938. It tried to dig out the cruelties of the Congress ministries in seven provinces. The report took up the Congress support to the rival Muslim organizations, intimidation and threats to the pro-Muslim League people.

The Sharif Report, March 1939

The ML deputed Mr. Shareef with members to investigate the injustices under the dictatorial rule of the Hindus. This report mainly collected the facts, concentrating on ill treatment of the government with the Muslims in Bihar.

The Fazl-ul- Haq Report: (December 1939)

A. K. Fazl-ul-Haq published a pamphlet entitled Muslim Sufferings Under the Rule of Congress and made many alarming revelations e.g. forbidding of Azan, attacks in mosques, noisy processions of the Hindu scoundrels, forbidding of the cow-slaughter etc. This pamphlet responded the indictments by the Congress on the Muslims.

All the reports described the Congress government as an attempt to create 'Hindu Raj' that wanted to overwhelm the Muslim culture and their identity. It was a rigorous threat to the Muslims' interests.

Muslim League Activism:

The Muslim League highlighted the issues and mobilized the Muslims to counter them adequately. It reorganized the Muslim community to cope with the situation. The ML arranged its session at Lucknow in October 1937. Many prominent leaders like Fazlul Haq participated in the session while Sikander Hayat and Saadullah announced their support to the ML.

The Muslim leaders shed a sharp criticism on the Congress policies. They protested against the reduction of status of Urdu and other Muslim related issues. They created realization, amongst the Muslims, of what can happen under the Congress rule and urged for serious thinking about the future political and constitutional arrangements. They unearthed the real objectives of the Congress and urged the need of unity among the Muslims under the banner of Muslim League.

The Second World War (September 1939) proved blessing for the Muslims in a sense that the Congress Ministries resigned in November 1939. The Muslims observed Day of Deliverance on December 22, 1939.

The ML redefined its position during the World War II. They expressed their enthusiasm that no constitution to be enforced without the consent of the Muslims. They eradicated their organizational weaknesses and refined their objectives keeping the experiences of the Congress ministries.

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Lecture 11

The Lahore Resolution, 1940

The experience of Congress Rule compelled the Muslims to launch the movement for separate homeland. The Hindus made them realize that Hindu government would mean an anti-Muslim rule in India. The Muslims' disappointment from the Congress leadership decided to open a new phase of history. Quaid-i-Azam's article in *Time and Tide* concluded that Muslims are a nation. No Constitution can be enforced by ignoring Muslims. His comments on March 13, 1940 are remarkable: "If some satisfactory settlement cannot be found for Muslims in united India, the Muslim will have to demand for division of the country."

The Lahore Resolution:

The Muslim League held its annual session at Lahore on 22-24 March 1940. The Lahore Resolution was moved by Maulvi Fazlul Haq and seconded by Ch. Khaliquzzaman that finally approved on March 24, 1940. Jinnah rightly expressed his valuable remarks about the political circumstances of India and the Muslims stand. He said:

> "Indian problem is not communal but international. No Constitution can work without recognizing this reality. Muslims of India will not accept a constitution that establishes a government of the Hindu majority on them. If Hindus and Muslims are placed under one democratic system, this would mean Hindu Raj."

Text of the Resolution:

- They decided that the Federal system under Government of India Act, 1935 was not acceptable for the Muslims.
- No revised constitutional plan would be acceptable unless it was framed with their approval and consent.
- Adjacent units where Muslims are in a majority, as in Northwest and East, should be constituted as Independent States where the constituent units will be autonomous and sovereign.
- Protection of minorities would be given priority.

Significance:

This Resolution did not specify any demarcation of the territory but it defined the future plan of struggle for the establishment of the Muslims states (later the word 'states' was replaced by 'state' in 1946) in the Northwestern and Eastern areas where the Muslims were in overwhelming majority. It also intended to give importance to the autonomy of the states. There was no use of the word Pakistan but Pakistan was kernel of the Resolution.

Later Developments:

The World War II started in 1939 that required heavily men powered battlefield. The British who always believe in bargaining announced an offer in August 1940:

1. Expansion of the Viceroy's Executive Coucil and the setting up of National Defence Council
2. Special importance to the views of minorities in the revision of the constitution.
3. Power could not be transferred under a system that will not be acceptable to large and powerful minorities in India.
4. Dominion Status: the ultimate goal
5. Cooperation of Indians for the war

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Congress rejected it and started Non-Cooperation movement 1940-41. Lahore Resolution remained the ultimate goal for the Muslim Leagues.

The Cripps Mission, March 1942

The constitutional proposals for seeking Indian cooperation for war efforts:

1. Dominion status
2. Indian constitutional body to frame constitution
3. Princely states would be represented.

The Cripps Mission negotiated with Indian leaders and issued the proposals. The Congress rejected the proposals and demanded that a responsible government would be set up immediately after the war. The defense affairs should be under the Indian control. The Muslim League also rejected the proposals and repeated its stand that the Muslims could not live in Indian Union.

The Hindus started Quit India Movement in August 1942 seeing British in trouble. The Muslim League stayed aloof and responded by saying that divide and quit India.

Gandhi-Jinnah Talks, September 1944

MK Gandhi did not accept the Hindus and Muslims as Two Nations and emphasized on the freedom of united India. Jinnah told him that the Muslims could never budge even a single inch from their ideological and constitutional demand.

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Lecture 12

Major Political Developments in 1945-46

Political Situation in 1945

During the World War ll, the British sought Indian military cooperation and offered political and constitutional changes after the war. They desired to expand the Viceroy's Executive Council.
Lord Wavell arranged Simla Conference during June-July 1945 in which all the political parties participated by sending their representatives. Jinnah and Abul Kalam Azad represented the Muslim League (ML) and the Congress respectively. Maulana Azad claimed Congress as sole representative party of all the peoples living in India. Jinnah considered the ML the only political party of the Indian Muslims and on this the ML had right to appoint Muslim members to the Council. This issue could not be dissolved and the differences between the ML and the Congress increased.

The Elections, 1945-46

Lord Wavell announced elections in August 1945. He visited England and after consultations he presented new political steps:

1. Self government with the cooperation of Indian leaders.
2. New Elections in the winter.
3. Provincial governments in the provinces
4. Constitutional Assembly to be convened. The basis of constitution making was to be settled.
5. Executive Council to be set up. It will have representation of major parties.

Elections:

The ML's stand was very clear i.e. the ML is a sole representative of Muslims and Pakistan is its ultimate goal. The ML launched the massive campaign for these destinations. The Islamic slogans became massively popular. In this way, the struggle for the establishment of Pakistan was motivated on the basis of Islam. The role of students was also prominent during the political drive. On the other hand, the Congress put the slogan of independence from British in the shape of undivided India before the Hindu nation. They proclaimed that their stand was for all the Indian communities.
In December 1945 the elections of Central Legislature were held and the ML won all 30 Muslim seats. The Congress won 57 seats.

Provincial Elections: February 1946

In the provincial elections, the ML won most of the Muslim seats:

1. Punjab: 79 out of 86 Muslim seats
2. Bengal 113 out of 119 Muslim seats
3. Sindh 28 out of 35 Muslim seats
4. NWFP 17 out of 38 Muslim seats

The ML also showed an impressive performance in the Muslim minority provinces. The ML formed its ministry in Sind, Khudai Khidmatgar (Dr. Khan) in NWFP, coalition government by ML in Bengal, and Unionist (20), Akalis and the Congress in Punjab (Khizr Hayat Tiwana).

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The Cabinet Mission: March 1946
The British Labour government sent a mission to formulate some acceptable constitutional settlement. Sir Pethick Lawrence, Stafford Cripps and A. V. Alexander deliberated with the governors, members of the Executive Council and then the Indian political leaders on different proposals. Maulana Azad as the president of the Congress stressed to establish federal government and Jinnah repeated the Two Nation Theory as a universal reality. On April 19, 1946, all the newly elected Muslim members pledged in the Delhi Convention to shatter the Hindu dream of united India. In the second Simla Conference (May 15, 1946) the ML wished two legislative assemblies while anti-ML political parties favoured strong centre.

Recommendations of the Cabinet Mission: May 1946
Indian Union comprising British India and princely states.

1. Centre to deal with foreign affairs, defence, communication, taxation.
2. Rest of the subjects with provinces.
3. There will be a legislature and executive comprising representatives of provinces and states.
4. No legislation on communal affairs if the majority of the two communities are not present and voting in favour.
5. Provinces will be divided into three groups:
   A: Hindu majority provinces e.g. UP, CP, Madras, Bombay, Bihar, Orissa.
   B: Muslim majority provinces in NW e.g. Punjab, NWFP, Balochistan and Sindh.
   C: Bengal and Assam.
6. Each group could decide what to be managed jointly and what should be managed by provinces themselves. They could decide if the group desired to frame constitution.
7. After ten years, a province by a vote of its legislature could ask for review of relationship with the Union. It implied that a group or province could quit the Indian Union.
8. CA to be elected by the elected members of the provincial assemblies. Seats to be divided into three categories: General, Muslim, and Sikh on the basis of population in provinces.

Separate Electorate.

9. Interim Government to be set up.

Muslim League Reaction:
The Muslim League reiterated its demand for Pakistan. It accepted the plan for two reasons: Basis and foundation of Pakistan was in the compulsory grouping and the right to ask for review.

Congress Reaction:
The Congress was critical of groupings and right to ask for review of constitutional relationship. It agreed to contest elections for the CA but declined to be bound by the proposals of the Cabinet Plan. The nonsensical stand of the Congress was that they were ‘free to make any change in the proposal.’ Definitely the ML was alarmed by the Congress’ intentions.

Interim Government:
Representation in the Interim Government became controversial on the question of who would nominate the Muslims representative. To put pressure on the government, the Congress refused to join the Interim Government and the British postponed it. The ML was disappointed by the British behaviour and decided to review its acceptance of the Cabinet Mission Plan.

Direct Action Day: August 16, 1946

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The ML's timely coercive political strategy brought the Congress on table with the British. The Interim Government was formed under Nehru on September 2, 1946 and the ML stayed away. They joined it on October 25, 1946:

- Liaquat Ali Khan
- Sardar Abdur-Rab Nishtar
- Raja Gazanfar Ali
- Chundrigar
- J. N. Mandal

There were a number of problems of smooth functioning of the Interim Government due to the Muslim-Hindu differences.

Constituent Assembly:

CA (Constituent Assembly) was elected by the provincial assemblies in July 1946. ML won all Muslim seats except 5 while the Congress won all general seats except 9. The first session was held on December 9, 1946 and the ML boycotted it because the Congress wanted to frame the Constitution for United India. The ML demanded two constituent assemblies and showed its firmness on the demand for Pakistan. By the end of 1946, it had become clear that a constitution for united India could not be forced.

The Cabinet Mission Plan offered a possibility of a loose federation with an option to the Muslims to separate after ten years.

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Lecture 13

Towards Independence, 1947

Civil Disobedience Movements:

The ML decided to confront the political situation through the protesting means for the first time. The Congress had been working on these lines but the Muslim leaders considered politics a gentle man's game. Now when the British government joined hands to oust the Muslims from the constitutional and moral position they decided to launch 'Direct Action.' The ML revised its decision rejecting the Cabinet Mission Plan. Direct Action Day (August 16, 1946) was a protest against the British policy of injustice towards the Muslims. The Hindu attacks transmuted the course of the protests and concluded huge life casualties. The Calcutta massacre convinced Lord Wavell to bridge the ML-Congress to some settlement.
Wavell tried to prepare Nehru and Gandhi to coordinate the ML. It was imperative to do because Muslim League (95% seats) refused to join the Legislative Assembly. Congress rejected all the possible offers even from the government. Churchill snubbed the Labour government on the Calcutta riots and the Viceroy requested Jinnah to join the Interim Government that Jinnah accepted. On October 25, 1946, the members of the Executive Council were finalized.

Punjab:
ML had bagged 79 out of 86 seats in Punjab but Khizr Hayat Tiwana formed his government with the help of Hindu and Sikh members (Unionist). The ML confronted this conspiracy and protested to restore the people's will (Feb. 1947). The Punjab government dealt with the situation cruelly. Here the Muslim women played very outstanding role in the ML struggle. The Khizr Government resigned and Governor's rule was imposed on March 2, 1947.

Assam:
Maulana Bhashani launched a movement against the ejection of Muslim peasants.

Announcement of February 20, 1947:
Prime Minister Attlee declared by June 1948, all power would be given to representatives. If no constitution was framed, the British Government will think whether the powers be given to provincial governments. In some areas or any other alternative that is in the interest of Indians. Mountbatten was appointed new Viceroy of India.

Mountbatten as Viceroy:
Mountbatten arrived in Delhi on March 22, 1947. The basic objective of his appointment was to wind up British rule. He arranged dialogue with the Indian leaders. Then he visited England for deliberations for new plan.

3rd June Plan:

- The British will not impose a constitution but the Constituent Assembly will frame a constitution.
- The constitution will not be imposed on the areas that do not accept it. Opinion will be sought from them if they want to set up a separate CA (Constituent Assembly).
- Punjab & Bengal Assemblies will meet in two parts, members from Muslim majority areas and other districts separately to decide if the province be partitioned.
- If any part decides for partition, each group will decide which CA they wish to join.
- Sind Assembly will decide about joining either side.
- Referendum in NWFP
- Balochistan: appropriate method
- Boundary Commission for Punjab and Bengal
- Princely states to decide for themselves keeping in view their geographical contiguity.

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Indian Independence Act July 1947:
To give legal shape to the June 3 Plan, the Indian Independence Act was promulgated (July 1947).

- Two independent dominion states on August 15, 1947
- Their legislatures will have all powers to make laws for the respective states.
- Government of India Act, 1935, to be interim constitution subject to changes due to Indian Independence Act 1947.
- Governor Generals can amend the Interim Constitution until March 31, 1948.
- All arrangements between the British and the Princely states to come to an end and they will have new arrangements with the new states.
- British King will no longer use the title of the King of India

The Partition Process:

Punjab
The Muslim members favoured joining new CA. the non-Muslims voted for partition and joining India.
Bengal
Muslims favoured joining new CA while non-Muslims favoured partitioning and joining India.
Sindh
The Assembly voted to join Pakistan.
NWFP
Referendum decided in favour of Pakistan while Dr. Khan's govt. boycotted it after it became clear that it would lose.
Balochistan
Shahi Jirga and the non-official members of Quetta Municipal Committee opted for Pakistan.
Sylhet
Referendum was held to join East Bengal for joining Pakistan.

Governor General's Issue:
Mountbatten wanted to be joint GG (Governor General) of India and Pakistan while ML decided to appoint Jinnah as the first Governor General of Pakistan in July.

Transfer of Power:
1st meeting of the Constituent Assembly was held on August 11, 1947 and the ceremonies on August 14. Radio announcement was made at midnight 14-15 Aug. Oath taking ceremony for GG (Governor General) and PM (Prime Minister) was held on August 15 1947.

Boundaries determined on August 17:
Boundaries Commission award declared many controversial decisions about certain areas like Gurdaspur, Zira Tehsil etc, but the ML accepted it with protest.

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Lecture 14

Constitutional Development in British India

Following acts were introduced by the British government in India.

1. Indian Councils Act, 1861
2. Indian Councils Act, 1892
3. Government of India Act, 1909
4. Government of India Act, 1919
5. Government of India Act, 1935

End of East India Company's Rule:
On August 2, 1858 British Parliament passed a law for complete takeover of all rights of the East India Company over India. Post of Secretary of State for India was created through the cabinet. The Secretary of State for India was empowered about government and revenues of India.
On November 1, 1858 Queen Victoria issued a proclamation for the assumption of control of India by the British Crown. Lord Canning, Governor General of India was given the title of "Viceroy." He continued in office but not as the Company's representative but direct representative of British Crown. Moreover armies of the Company came under British Control.

Indian Council Act, 1861
This act was the first legislation by the British government in India. Before that laws were promulgated by the East India Company.
According to this act:

Governor General could assign special tasks to any members of the Executive Council.
Important matters were to be discussed with the Governor General. Some important subjects were kept directly under the Viceroy, e. g., Foreign Department.
Membership of the Council was raised: 6 to 12. Half of them were to be non-officials, nominated for two years.
The Council had limited legislative powers.
In Madras and Bombay Councils approval of the Governor General (GG) and Governor was needed. This act provided Indian representation by nomination.

Indian Council Act of 1892
By this act:
Size of Legislative Council increased.
In Central Legislative Council the membership was increased: 10 to 16 members.
At Provincial level representation was increased. In Madras & Bombay 8 to 12, Bengal 12 to 20.
Limited powers were given to the legislatures. Questions could be asked.
Nominal elections through special interests were allowed. GG and the British government made these appointments.

Government of India Act, 1909 (Minto-Morley Reforms)
This act was another step towards giving Indians more representation in the Government.
This act provided,

- Expansion of Legislative Councils
- Central: Additional members up to 60
- But official majority remained there.
- Provincial: Size varied in different provinces.
- Bombay, Madras, Bengal, UP: 50
- Non-official majority
- Not all the members were elected.
- Powers of the Councils were increased. Now

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- Budget could be discussed. Members were allowed to present Resolutions and put up questions.
- Executive Councils were formed for Bombay, Madras and Bengal and Lt. Governor Provinces.
- Elections were to be held by University Senate, District Boards, Municipal Committees, Zamindars, and Chambers of Commerce.
- Separate Electorate was accepted for minorities.

Government of India Act, 1919 (Montagu-Chelmsford Reforms)

In the background of some significant developments between 1909-1919 like World War I- 1914-1918, political activity during Tehrik-i-Khilaphat, change in Muslim League objectives, Lucknow Pact 1916 etc., the British government announced that gradual induction of Indians in all branches of government would be done. Gradual introduction of responsible government would be done. Commissioned ranks of Army would be given to the Indians.
Mr. Montagu, Secretary of State visited India from November 1917 to April 1918 and discussed the constitutional matters with Viceroy Lord Chelmsford and the Indian political leaders. The outcome was the government of India Act 1919.

Salient Features, Government of India Act 1919
This act provided a bicameral legislature at the Centre, which consisted of two houses.
One was the Council of State with a membership of 60, out of which 34 were to be elected and 26 nominated official & nonofficial members. The Council's tenure was fixed at 5 years.
Legislative Assembly was consisted of 145 members, out of whom 105 were elected and the rest would be nominated.
Direct elections were introduced with limited franchise on the basis of property, tax paying, previous experience of legislative councils, university senate, district councils, etc.
Separate Electorate for minorities.
Limited law making powers were assigned to the Legislature but for certain categories prior permission was required. It had no control over defense, foreign policy, budget etc. Legislature could refuse grants but GG could restore them.
Questions, Resolutions, Adjournment Motions were allowed.
G.G. remained a powerful office with all the executive, legislative powers with a nominated Executive Council.
Two lists of subjects were given in the act, one was Central and the other was Provincial. Centre had overriding powers.

Provincial Legislative Councils
Membership increased. 70 percent were elected. They were having limited powers. They could reject budget but GG could restore it.

Diarchy System in the Provinces
The act introduced DIARCHY system in the provinces. According to the new arrangement subjects were divided into two categories i.e., Reserved subjects and Transferred subjects. Reserved subjects included judiciary, canal, land revenue, Finance, press, power, etc.
Transferred subjects included Local govt. education, public health. In case of a dispute, if something belonged to reserved or transferred side, the Governor was entitled to make the final decision.
Limited Responsible Government at the provincial level was introduced. The system of Diarchy was complicated.
The continuous tussle between the elected and nominated members created fear of breakdown of administration. GG had Control on key departments. Elective elements became strong in the legislatures.

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Government of India Act, 1935
It was the most important and most comprehensive legislation introduced by the British Government in India. It was gradually formulated starting with the Simon Commission, Round Table Conferences, White paper (1933) and J.S.C. it was a lengthy document passed by the parliament in July 1935 and got Royal assent in August 1935.

Salient Features
It provided a Federal System with a centre, 11 Governor Provinces, 6 Chief Commissioner Provinces and the states willing to join it.
Three lists of subjects were given with a powerful centre. Federal list had Defense, Postal srevices, External affairs, Coinage and Communication. Provincial list included education, police, Local self-government, justice, agriculture, public service, fisheries and forests. The concurrent list included criminal law, civil marriage, divorce, registration, bankruptcy, factories and succession.

Two houses of Central Legislature:

i. Council of State comprised of 260 members, out of which 156 were from British provinces and 104 from Indian States.
Method of election was indirect. Communal representation was also secured.
ii. Federal Assembly was lower house consisted of 375 members. Out of which 250 represented

British provinces and 125 from Indian States.
They were elected by provincial legislatures on the principle of separate electorate.
States were to nominate their members.
Limited Powers were given to legislature:
80 percent of budget was above their vote.
They could do law making for two lists but GG could turn down or refuse the bill keeping it for consideration of the British Government.
This constitution provided a Powerful GG: Executive Chief having powers of

- Act on advice
- Independent Judgment
- Discretion
- Emergency powers
- Ordinances
- Power to rule provinces directly

Provincial Governments:
Governors enjoy the powers like the GG in the Centre.

- Diarchy abolished in provinces.
- Responsible government was formed.
- Provincial legislatures not unicameral. Act provided for bicameral legislatures in six provinces and unicameral in five provinces.
- Franchise extended but still restricted on the basis of land revenue Rs. 5, Non-transferable property of Rs. 60, Education: Primary.
- Federal Court and High Courts were formed under the act.
- Burma was separated from India.
- Sindh was separated from Bombay.

Comments:

- Federal part of the act was not introduced.
- Provincial part introduced in 1937.
- Provincial autonomy was provided.
- Elected governments were formed in provinces

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- A strong centre was maintained.
- This act expanded electorate.
- Indian government under this act had no control over defense.
- Indian legislature could not amend it.
- Federal legislature elected indirectly

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Lecture 15

The Problems of the New State

The attainment of independence brought an end to one phase of the struggle and marked the beginning of a new one for setting up and running a viable, stable and prosperous state. Pakistan began its independent life under very difficult and unfavorable circumstances. Pakistan faced serious problems in the initial stages.

1. **New Administration**
2. **Division of Assets**
3. **Integration of Princely States**
4. **Communal Riots and Arrival of Refugees**
5. **Canal water and trade issues**

1: New Administration

The shortage of trained human power especially senior officers was a serious problem in the setting up of federal government in Karachi. Most of them had migrated to India. There was a shortage of office space, equipment and furniture. This disturbed the direct connections between the federal government and provincial governments. On the other hand, the provincial governments were overburdened that needed very accurate connection between the centre and the provinces to solve the problems of the Muslim refugees who had nothing to eat, drink, wear, rest, etc. To counter the critical situation, the official system should have been efficient but due to the lack of all these facilities the administrative authorities were painfully facing difficulties.

2: Division of Assets

The Indian **government** was not cooperative for transfer of record and equipment to Pakistan. The civil administration was not handing over the promised financial, military, and other shares that created mountainous hurdles to eradicate the pains and miseries of the refugees.

Financial Assets

The full financial share of Pakistan was not transferred. Initially rupees 200 million were transferred that were not sufficient to meet the expenditures of the newly born state. The Indian government was so reactionary that it tried its level best to block these funds to suffocate the newly born Muslim state as they expected foolishly that Pakistan would collapse and rejoin India soon after its existence. They did not release the remaining funds until Gandhi's threat of *marn bert* (fast until death). Under this pressure, more funds were sent in early 1948 but no installment was later paid.

Military's Division

As far as the problem in dividing man power there was no serious setback because the division was not in the hand of third person and Muslims were free to come to their dreamland, Pakistan. Anyhow, their shifting was slow and insecure. There were obstacles in the Pakistan's share of weapons, equipment, and stores. The broken and damaged stuff was sent by India. Pakistan did not get any ordinance factory. Reorganization of the Armed Forces was another tough job and the there was no army officer up to the rank of colonel. The shortage of experienced officers convinced British officers to continue their services. This also accelerated undue promotion in the military services to fill the gap.

3: Integration of Princely States

There were over 560 princely states in India on the verge of the partition of India. About 500 states had joined India before August 15 because of the motivation by V. P. Menon and Mountbatten. The princes were inclined to honour every gesture of the British representative so

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they conceded what the member of the Royal family (Mountbatten) wished. The Hindu-British conspiracy blocked states to join Pakistan.

Junagadh
It was a small state with access to sea having about 7 lakh population and 3377 mile area. The ruler was Muslim while the majority of its population was Hindu. The ruler decided to accede to Pakistan and Pakistan also accepted the accession. In November 1947, the Indian troops entered the state and took its control. The referendum favoured India.

Hyderabad
It was geographically big and financially a rich state. Its ruler was Muslim and majority population was Hindu. It was surrounded by India from all sides. The Nizam wanted to stay independent. Mountbatten discouraged him and signed **Standstill Agreement**. But India built pressure on the Nizam by sending its troops in September 1948 claiming that serious law and order situation had developed. The state was integrated in India.

Kashmir
The most important state was Kashmir naturally connected with Pakistan. Its ruler was Hindu while population was Muslim. The population inclined towards Pakistan but the Hindu ruler declared to join India. The Kashmiri people revolt against the ruler in Poonch area and soon it became widespread. The ruler sought Indian support. India demanded accession. On October 27, 1947 Indian troops landed in Srinagar. The people continued their struggle for independence and India promised to finally settle the matter with reference to the people under the UN Resolutions.

4: Communal Riots and Refugees
The Communal riots occurred earlier in August 1946. The killing of Muslims in Indian areas forced them to leave India. The Sikhs and Hindus attacked the refugee caravans and trains. There were organized gangs to kill the Muslims. The refugee problem created critical condition in the border areas. The massive migration proved serious economic and humanitarian problems for the new state. The military was asked to help cope with the refugee problem.

5: Canal Water Problem
The major rivers flow from Kashmir and some canal heads located in India. In 1948, India cut off water to some canal that was a serious threat to agriculture in West Pakistan. The Indian plans to build water storage on the rivers that are vital for Pakistan's economy worsened the situation. It also showed the traditional anti-Muslim attitude. The World Bank settled the problem in September 1960 (Indus Water Treaty).

6: Trade Problem and the Economy
India devalued its currency in 1949 but Pakistan refused to do so. It stopped trade that adversely affected Pakistan's economy as it depended on trade from India. Pakistan had inherited a weak economy and poor industrial base. The beginning years of Pakistan were troubled and difficult due to the India's non-helpful policy and the war in Kashmir. It had profound impact on Pakistan's worldview and its relations with India. Pakistan strived for its survival and security. Many Indians and the British predicted the collapse of Pakistan. They were of the opinion that very soon the Muslims would realize their blunder. They would be forced by the circumstances to go back to join India. But PAKISTAN, by the grace of Almighty Allah, was able to meet the challenge even with its problems.

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Lecture 16

The Objectives Resolution (1949)

The Objectives Resolution was the first constitutional document that proved to be the 'foundation' of the constitutional developments in Pakistan. It provided parameters and sublime principles to the legislators. It made the constitution-making process easy task setting some particular objectives before them that would be acceptable to the people of Pakistan who had suffered a lot under the Hindu-dominated majority. The Resolution was moved by Liaquat Ali Khan, the then Prime Minister of the Islamic Republic of Pakistan, and approved on March 12, 1949.

The Constituent Assembly (1947-54)

The first Constituent Assembly came into existence under Indian Independence Act 1947. The elections were held in July 1946 to decide the destiny of the All India Muslim League (AIML)'s claim that it is the only representative party of the Indian Muslims that desire separate homeland, Pakistan. The members from the districts that became part of Pakistan were declared members of the Constituent Assembly. The number of such members was 69. It increased to 79 after the 1947 when some states joined Pakistan and then increase in the population. There were two major parties, Muslim League and Congress in the Assembly at that time. This Assembly had dual functions to perform.

Features of the Objectives Resolution

1. Sovereignty over the entire universe belongs to Almighty Allah alone.
2. The authority which He has delegated to the state of Pakistan through its people for being exercised within the limits prescribed by Him is a sacred trust.
3. Constitution will be framed for sovereign, independent state of Pakistan.
4. The state shall exercise its power through the representatives of the people.
5. Principles of Democracy, freedom, equality, tolerance and social justice as enunciated by Islam will be fully observed.
6. Muslims shall be enabled to organize their lives in accordance with the teachings and requirements of Islam as set out in the Quran and the Sunnah.
7. Minorities to have freedom to freely profess and practice their religions and develop their cultures.
8. Provisions for safeguarding the legitimate interests of minorities, backward and depressed classes.
9. Pakistan shall be a Federation with autonomous units. State's sovereignty and territorial integrity will be protected.
10. People of Pakistan should prosper and attain their rightful place in the comity of nations and make contribution towards international peace and progress and happiness of humanity.

Explanation and Importance

The Resolution declared the sovereignty of God as the distinctive political philosophy. The Western democracy gives the notion that sovereignty lies in the people but this Resolution is important having the concept of the sovereignty of God. It clarified that people would utilize powers gifted by God so they would have to work within the limits prescribed by Him. The exercise of the powers is a sacred trust. The representatives of the people of Pakistan will manage the affairs under the universal ideology of democracy, freedom, equality, tolerance, and social justice with the spirit of an Islamic framework.

The Resolution pledged to give the due respect and rights to the minorities, backward and depressed classes in the benign society of Pakistan. Their rights, interests, religion and culture were not confuted.

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It's important that the Resolution promised the federating units for due powers, autonomy and territorial integrity.

Objections by Non-Muslims

The major objection by the Non-Muslims was that the government was trying to mix the religion and politics that was against the spirit of democracy. The non-Muslims objected on the 'Sovereignty of Allah' and minorities' rights, saying it would promote inequality in the society. They were also of view that Shariah was not adequate for the modern time. They feared that it would encourage the religious extremists to work for the establishment of a 'theocratic state.'

Importance

The Objectives Resolution is a basic and primary document of the constitutional history of Pakistan. It is a framework that provides mechanism to achieve goals for a better life of the people of Pakistan. It's important that it embraces centrality of Islam to polity sustaining their links with the pre-independence period. The AIML leaders were modernist Muslims not in favour of an orthodox religious state. Therefore, they selected the middle way abiding by the Islamic laws and the international democratic values. The Resolution remained 'Preamble of all the constitutions due to its importance.

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Lecture 17

Constitutional Issues

Constitution is a set of basic principles and framework for governance and exercise of political power and legal authority. It clarifies the scope of power, relationship among various institutions within the government and society. It has precedence over ordinary laws and cannot be changed like ordinary laws. The Government of India Act (1935) was modified and promulgated in the newly state of Pakistan. The elected members in the 1946 elections made the first Constituent Assembly that faced grievous circumstances.

Major Issues

The major issues, the first constituent assembly faced, were about:

1. Federalism
2. Representation
3. Separate or Joint Electorate
4. The National Language Issue
5. Parliamentary or Presidential system
6. The Islamic or Secular State

1: Federalism

There was consensus on federalism but yet there were many issues to be settled. The main was that Pakistan consisted of two territorial parts, East Pakistan (with more population, less territory but administratively one unit) and West Pakistan (administratively 4 units). Federalism is meant to accommodate such kind of diversity maintaining the unity of the state or country.

Division of power:

It was the most difficult question that how the power would be divided between Centre and the Provinces. The heritage of British rule gave the tradition of a **Strong Centre.** But the provinces were demanding more **Autonomy and Provincial Rights.**

In the Interim Constitution and the 1956 Constitution tradition of strong centre continued.

2: Representation

Representation at the federal level was another conflicting issue because East Pakistan and West Pakistan were different in population and size. On the other hand there was diversity in Western part of Pakistan. The provinces of West Pakistan were also different in population and size. All of them were sensitive to their representation and provincial autonomy.

To have a Standard Formula for the representation of units and population the Constituent Assembly (CA) formed a Basic Principle Committee (BPC) on March 12, 1949. The primary task of this committee was to frame a set of basic principles for the future constitution of Pakistan.

First BPC Report:

This committee presented its first report on 28th September 1950. According to this report two houses of the parliament were proposed. The lower house was to be elected on the basis of POPULATION and the upper house was to be elected on the basis of equal representation for all the provinces of Pakistan namely East Bengal, West Punjab, Sindh, NWFP and Baluchistan. Equal powers were proposed for the both Houses. No mention of National Language was made. East Bengal opposed this report and Liaqat Ali Khan withdrew it.

Second BPC Report:

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BPC presented its final report on 22nd December 1952. According to this report two Houses of the Parliament will enjoy the equal status and powers. It proposed equal representation to East and West wing.
This report also faced reaction in both the wings of Pakistan. The principle of parity was not appreciated in both East Pakistan and Punjab.

Muhammad Ali Bogra Formula:
Muhammad Ali Bogra immediately after assuming the office of the Prime Minister presented a formula to resolve the deadlock in constitution making. According to this formula Pakistan would have a bicameral legislature. In upper house there would be EQUAL representation to each of five units. In lower house population will be represented. In this way more representation was given to East Pakistan.
Both wings would have equal strength in joint sessions of the two houses.

Reaction to Bogra Formula
It was welcomed in both parts of the country. The principle of parity and representation of the population was appreciated. It also solved the problem of national language by suggesting Urdu and Bengali both as national language.

One Unit of West Pakistan October 1955
One Unit of West Pakistan was established on 14th October 1955. The provinces of Punjab, Sindh, NWFP and Baluchistan would be amalgamated in one unit to establish parity between the two parts of the country.

3: Separate or Joint Electorate
Separate electorate was adopted on the demand of Muslims in 1909 by the British Government. But the minorities did not favour this after independence. Religious elements supported this as a part of heritage.
East: decided for Joint Electorate.
West: Separate electorate.
1957: Joint Electorate was adopted for all Pakistan by the National Assembly.

4: The National Language Issue
Pre-independence: Muslim elite all over India adopted Urdu. In 1948 Jinnah declared that Urdu would be the national language but provinces could use their languages.
Opposition against Urdu was there in East Bengal. This became more pronounced after the death of Jinnah as controversies erupted on constitution making. Language Movement started in East Pakistan February, 1952.
There was a complaint about anti Bengali language attitude of the federal government.
Two-language formula was adopted in 1954. Since 1973 Urdu was adopted as national language along with the support for development of regional languages.

5: Parliamentary or Presidential
There was a consensus for parliamentary system. But there was a limited demand for presidential system. Supporters of Presidential system became dominant after the 1958 military takeover. The 1962 Constitution was a Presidential constitution.

7: The Islamic or Secular State
From the very beginning of Pakistan Movement there was an agreement that the state will have close relationship with Islam. Muslims defined their national identity with reference to Islam and its heritage. Some opposition came from the Congress members of the Constituent Assembly, and a few secularists.
There was a BROAD AGREEMENT that the state will identify itself with Islam. The Constituent Assembly took time to define the precise relationship between the state and Islam.

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Objectives Resolution
As discussed in lecture 16 Objectives Resolution rejected theocracy in Pakistan and provided the basic objectives for the future constitution of Pakistan.

The issues to be addressed were:

1. Scope of legislation for an elected Assembly?
2. Who will decide about the Islamic nature of laws? Should a Board of Ulema be given this power?
3. Position of women, vote and work?
4. Religious minorities?

Discussion in the Constituent Assembly and outside continued. There was an active demand by religious elements for Islamic political system. In this context the leading Ulema of various sects presented famous 22 points to provide a religious base to the future constitution.

The Key Issue:
What kinds of institutions and processes have to be created to translate the notion of supremacy of the Qur'an and the Sunnah

- The Constituent Assembly adopted a middle course and a modernist perspective.
- Spirit of Islamic principles and values, modern notions of governance, representation and administration were amalgamated.

Islamic provisions would be taken up when we discuss the constitutions.

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Lecture 18

Constitution Making (1947-56)

Constitution is a basic document in the handling of domestic affairs. It sets out the framework for governance and exercise of power. It gives guiding lines of relationships among the federating units. Law making is always within its limits.

The modified Government of India Act (1935) became the Interim Constitution of Pakistan in 1947. The Constituent Assembly (CA) was given the task of framing the Constitution. The first meeting of the CA was held on August 11, 1947 at Karachi. In the lecture 17 we have discussed the constitutional issues that the CA had to deal with, mainly 6 major issues. Now we will discuss the stages of constitution making.

The process began with the passing of the Objectives Resolution (Lecture 16) in which the Islamic and democratic values were adopted as grounds for the future constitution. The Basic Principles Committee (BPC) consisting of 24 members was made to work for the constitutional powers. The various sub-committees on Federal and provincial powers, Franchise, Judiciary, and Fundamental Rights started working. Board of Talimat-i-Islamia was also set up to seek advice on the religious matters.

First BPC Report, 1950

1: The Objectives Resolution to be included in the Constitution as the directive principles.
2: Legislature: Two houses of the parliament.
Upper: (House of Units) Equal representation for the units
Lower: (House of People) On the basis of Population. Both the Houses would enjoy the equal powers.
3: The Head of State elected by joint session would be for five years (Two terms only). President had discretionary and emergency, appointment and other powers. President was not answerable to anyone, might be a Muslim or non-Muslim, would be assisted by the Prime Minister (PM) and Cabinet that would be answerable to the CA. Parliament may impeach him by 2/3 majority. He was given the power to abrogate the constitution.
4: Cabinet responsible to both the Houses.
5: No mention of national language

Criticism:

This report was severely criticized throughout the country. It could not satisfy both the wings, East and West. The religious group objected that the report contained nothing about Islamisation. On the question of representation, the East Pakistan (EP) protested that their majority had been denied by the Report. They remarked that they were thrown into a permanent minority. The population of EP was slightly larger than that of the West Pakistan (WP) but it was treated as the small provinces because both the Houses were given equal powers. So the domination of WP was intolerable for the East wing.

The language issue proved subversive to the national solidarity. The Eastern Pakistanis condemned the proposal that made Urdu as official language.

Second BPC Report, 1952

1. Head of State would be Muslim and no change in powers.
2. Equal representation to East and West wings:
   UH (Upper House) 60, 60 LH 200, 200
3. More powers were given to Lower House. Cabinet was made responsible to Lower House.
4. It was promised that law making would be in accordance with ISLAM. No law would be made in violation of Islamic principles.
5. Advisory Board of five Islamic scholars was founded.
6. Silent on national language.

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Criticism:
The politicians particularly from the Punjab deplored the Report because formation of the UH on the basis of representation was not acceptable. It was declared against the principle of federation. The WP favoured equality only for Upper House. The political crisis removed Prime Minister Nazimuddin and attention diverted from the core issue.

Third Report: Muhammad Ali Formula October 1953

The proposals were revised in the light of the criticism and decided:
Upper House: Equal representation to all five units
Lower House: More representation to Eastern part
While in joint session, both wings had equal representation:

	East Pak	West Pak
Upper House	10	40
Lower House	165	135
Joint Session	175	175

Decision by majority but it must include 30 percent members from each zone.

Criticism:
It suggested some difficult process but mostly it was widely acceptable. Two languages, Urdu and Bengali, were approved as official languages that injured the national unity as Quaid-i-Azam had wished Urdu as national language.
This is important that after the Formula, the work began on constitution drafting because the deadlock was over.

CA Dissolution
In October 1954, GG (Governor General) dissolved the CA that was challenged in the Sindh court by Maulvi Tamizuddin. The court declared the dissolution illegal but the Federal Court upheld the GG action but asked for setting up an elected CA.

2nd Constituent Assembly, June-July 1955
Ghulam Muhammad called a Convention on May 10, 1955. All its members were to be elected indirectly (by the provincial assemblies). In this way, the 2nd CA came into existence.

One Unit Scheme, October 1955
The presence of different provinces in the WP had complicated the issue of the WP representation in the CA. It was handled by uniting all the WP units into ONE (One Unit, October 30, 1955). Now both the parts had become two units and could be addressed equally.

Constitution-making
One Unit scheme helped the task of constitution making to accomplish successfully. The previous committees report helped the new Assembly that completed its work and presented in the 2nd CA on January 9, 1956. It, with certain amendments, was approved on January 29, 1956 and enforced on March 23. With this Pakistan had become an Islamic Republic.

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Lecture 19

The 1956 Constitution

The Constitution of 1956 was passed after long deliberations. It replaced the Interim Constitution. It has 234 Articles and 6 Schedules. It declared that the name of the country would be the Islamic Republic of Pakistan.
There was clear impact of the Government of India Act, 1935 and the Interim Constitution.

Features

1: Parliamentary System

Executive Authority vested in the President who exercised it on the advice of the Prime Minister except in the matters he had discretion.
President had ceremonial functions and exercised limited powers.
The President would be of 45 years of age, Muslim and qualified to be a member of National Assembly.
He was to be elected by National Assembly (NA) and Provincial Assemblies.

Prime Minister

PM would be appointed by President. President could not remove him unless he was sure that PM did not enjoythe support of majority in the National Assembly. The President would be its sole judge. He could ask PM to show his support. Cabinet was collectively responsible to NA. PM was the head of government assisted by cabinet.

One House Parliament:

National Assembly was the only house of the parliament having a membership of 300 plus10 women seats. Principle of parity was observed for representation.
Method of direct elections was adopted for general seats.
All legislative powers were rested with NA.
President could return, reject or sign the bills.
Regarding monetary bills of ordinary expenditure NA had all powers but they could not vote on Consolidated Fund List. Salaries of President, judges, federal service commission, etc. were to be paid through Consolidated Fund.
NA could control the Executive.

2: Federal System

The constitution provided three lists: Federal, Provincial and Concurrent. There were two Provinces in the federation of Pakistan.

3: Provincial Structure:

At the provincial level there was elected Assembly. The Parliamentary System under the nominal headship of Governor. The real powers were given to Chief Ministers and his cabinet. Centre had some overriding powers and some Emergency powers too. They were
Clause 191: Security or economic life was under threat for external or internal reasons.
Clause 193: Constitutional crisis in provinces.

4: Independent Judiciary

At centre level the highest court was Supreme Court, then High Courts in provinces and subordinate courts were established.

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Higher Courts have the power of Interpretation of the constitution. They could hear the disputes between governments. They were guardians of the Legal rights of the citizens.

5: Fundamental Rights

Civil and Political Rights were given to the people of Pakistan but they could be suspended in case of emergency.

6: Directive Principles of State Policy

These principles provided guidelines for policy making.
Principles of Objectives Resolution were included as preamble. The other principles included surety about Islamic practices, Welfare of people, non-discrimination, and fulfillment of basic needs, etc.

7: Islamic Character

- The name of the country was the Islamic Republic, Objectives Resolution was the Preamble.
- Other Islamic clauses were part of Directive Principles.
- No law can be made to violate Islamic principles and teachings.
- Existing laws would be brought in conformity with Islamic teachings.
- A Commission was to be appointed to examine the laws for bringing them in conformity.
- Whether a Law is Islamic or not, NA had to decide. The matter could be taken up with the Judiciary.
- Islam was not declared state religion.
- Islamic heritage and roots are combined with modern notions of governance and a moderate political system was adopted.

Working of the Constitution

No elections were held after the enforcement of elections. It was finally abrogated on October 7, 1958.
It worked from March 23, 1956 to October 7, 1958.

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Lecture 20

The 1962 Constitution

1. **Background**
2. **Constitution-making**
3. **Salient Features**

1: Background

Military took over on 7 October 1958 and consequently Ayub Khan became Chief Martial Law Administrator. One major task was to frame a new Constitution. The administration was critical of Parliamentary system because it caused instability in the past. They sought stability of the nation in the gradual development of democracy.

2: Constitution Making

The government introduced Basic Democracies in October 1959. Under this system Forty Thousand basic democrats (local councilors) were to be elected in each province. They have to perform functions as local government and their role in developmental work. They also acted as an electoral college for the election of president and the national assembly.

Elections for the Basic Democracies (BD) were held in December 1959 and January 1960. Then Presidential referendum was held by the elected BD members on February 17, 1960.

A Constitutional Commission was established in February 1960 under the chairmanship of Justice Shahabuddin, former Chief Justice. The tasks assigned to the Commission were:

- To examine the causes of failure of Parliamentary system.
- Recommend a new system keeping in view the

(a) genius of people
(b) standard of education
(c) internal conditions of the country
(d) need of development

Commission presented its report in May 1961 after then two committees reviewed it. Under the report of these committees the new Constitution was drafted.

Ayub announced the Constitution on March 1, 1962. Elections to the National Assembly (NA) and Provincial Assemblies (PAs) were held in April and May 1962 respectively.

The new Constitution was enforced on June 8, 1962. Martial Law was withdrawn. The new Constitution was consisted of 250 articles, 5 schedules.

3: Salient Features of the Constitution

3.1. Title of the State

Republic and Islamic Republic

3.2. Presidential System

A Powerful President who was responsible for administration and affairs of the state. He should be a Muslim, at least 40 years of age, should be qualified to be a member of NA. He would be elected through indirect elections for a period of five years.

If he has held office for more than 8 years, he could seek reelection with the approval of the NA and the PAs.

National Assembly was given the power to impeach the president, however it was difficult to achieve.

President could dissolve the NA but in that case he must seek re-election.

3.3. Powers of the President:

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President was the Focal point of all the Executive, Legislative and Judicial powers. Cabinet was responsible to him. All key appointments were to be made by President. He could issue Ordinances. He could also declare State of Emergency in the country.

3.4. National Assembly (NA)

NA was consisted of one house on the basis of principle of parity between two wings of the country. There were 150 seats plus 6 seats were reserved for women. All were elected indirectly. For the membership minimum age limit was 25 years.

3.5. Legislative Powers:

NA had all the powers of law making but law was to be finally ratified by the president.
President could sign, reject or return the bill.

3.6. Financial Powers

Financial Powers of NA were limited. Only new expenditure could be voted. NA could not reject Consolidate Fund List and Recurring Expenditure.

3.7. Federalism

There were two provinces of the federation: East Pakistan and West Pakistan.
Only one list of subjects, i.e. the Central list was given in the constitution.

3.8. Provincial Governments

Governors were head of the provinces and govern the province with his cabinet. Provincial governments were directly under the control of President.
There was a strong center with a Powerful President. He had enough powers to manage provincial affairs. In case of emergency powers Central government could take direct control of the province.

3.9. Principles of Policy

- National solidarity would be observed.
- Interests of backward people would be looked after.
- Opportunities for participation in national life.
- Education and well being of people.
- Islam would be implemented in day to day life.

3.10. Fundamental Rights

Fundamental Rights were provided in the constitution**.**

3.11. Political Parties

Originally Political Parties were not allowed.
Political Parties Act was introduced in 1962**.**

3.12. Islamic Provisions

Objectives Resolution was the Preamble of the Constitution. Other Islamic provisions were a part of Principles of Policy and not the constitution.

3.13. Advisory Council for Islamic Ideology

An Advisory Council for Islamic Ideology was made in the constitution having 5-12 members. It was a recommendatory body.

3.14. Islamic Research Institute

It was designed for the Research and instructions in Islam for assisting the reconstruction of Muslim society on truly Islamic lines.

3.15. Working of the Constitution

Constitution remained enforced from June 8, 1962 to March 25, 1969.

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Lecture 21

The 1973 Constitution

1. **Background**
2. **Constitution Making**
3. **Features**

1: Background

Abrogation of the 1962 Constitution on March 25, 1969 led to second martial law in the country.
Yahya Khan handed over power to Zulfikar Ali Bhutto on December 20, 1971 after the first general elections. But martial law continued and there was no constitution.
National Assembly approved an Interim Constitution, which was enforced on April 21, 1972.

2: Constitution Making

Constitutional Committee comprising National Assembly (NA) members from all parties was set up in April 1972. Law Minister was the Chairman of this Committee.
All parties agreed on the future political system in October 1972. The Committee reported on December 31, 1972. After long deliberations and compromises final draft was approved unanimously on April 10, 1973. The new Constitution was enforced on August 14, 1973.
The Constitution functioned since then with two gaps. It remained operational during following periods:

1973-77:	Operational
1977-1985:	Suspended
1985-1999:	Operational after changes
1999-2002 :	Suspended
2002 onwards	Operational after changes

3: Features of the Constitution

3.1. Parliamentary System

It was a parliamentary constitution having powerful Prime Minister (PM) as head of government with a very weak President.
President must act on the advice of PM. All his orders were to be countersigned by PM. Prime Minister to be elected by the NA.
PM exercised all executive authority.
PM was answerable to the NA.
In 1985, powers of the President were increased. He enjoyed some discretion in appointments of PM. He had power to dissolve the NA. He had the powers of appointment of caretaker PM.
He gives his assent to bills passed by the parliament or returns these.

3.2. President:

Must be at least 45 years of age, Muslim, qualified to become member of the NA. He is elected by the Parliament and the Provincial Assemblies for 5 years.

3.3. Parliament with two houses:

- Upper House called Senate. In this house equal representation is given to Provinces. Seats are reserved for the tribal areas, women and technocrats. Its original strength was 63, which was later raised to 87 and then 100.
  Senate is elected indirectly. It's a permanent House as half of its members are elected after three years.
- Lower House: National Assembly is elected on population basis. Its Original strength was 210 but now it is 342. NA is elected for five years.
- Senate: Indirect elections
- National Assembly: Direct elections
- Voting age for the franchise is lowered from 21 to 18.

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- Parliament under 1973 constitution is a powerful legislative body. It enjoys all legislative powers. It has control of the executive through questions, resolutions, parliamentary committees etc.
- National Assembly is more powerful than the Senate. Budget is presented before NA. Cabinet is answerable to National Assembly.

3.4. Federal System

Federation of Pakistan has four provinces and federally administered areas.
Two lists are given in the constitution: Federal list and Concurrent list. Residuary powers belong to provinces.

3.5. Provincial Structure:

Provincial Governors are appointed by the President on the advice of the PM. Elected Chief Minister exercises executive powers. Parliamentary system is there in the provinces.
Size of the provincial assemblies varies:

In 2002:

Punjab	371
Sindh	168
NWFP	124
Balochistan	65

Enough provincial autonomy is guaranteed. Tradition of strong centre continues.
Centre has emergency powers. Governor's rule can be imposed if the government cannot function in the provinces.
Provinces are dependent on centre for Finances.

3.6. Principles of Policy:

a. Islamic provisions are provided in Principles of Policy. Foreign policy principles are also given under this heading.

3.7. Fundamental Rights:

b. Fundamental Rights are secured in the constitution and are implemented through the highest court.

3.8. Islamic Provisions:

c. Title of the state is Islamic Republic of Pakistan.
d. The objectives resolution was the Preamble in the initial constitution but through article 2-A of 8th amendment it was inserted in the constitution in 1985.
e. Islam was declared the State Religion of Pakistan.
f. Definition of Muslim was included by an amendment.
g. Principles of Policy also carry some Islamic clauses.
h. Council for Islamic Ideology is established under the constitution.
i. Federal Shariat Court was added in 1981.

3.9. National Language:

j. Urdu is declared National Language, however English may be used for official purposes until arrangements would be made for its replacement by Urdu.
k. Provincial Assembly may prescribe measures for teaching, promotion and use of a provincial language in addition to the national language.

3.10. National Security Council:

l. National Security Council was added in 2002 in advisory capacity.

3.11. Judiciary:

m. An independent judiciary is given under the constitution. Supreme Court of Pakistan is the highest court. One High Court is established in each province and one in Azad Kashmir. A chain of lower courts is there under the high courts.

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Lecture 22

Political History

1. 1947-1971
2. 1972- to the Present

First Part: 1947-1971

1947-58
1958-69
1969-71

1: First Eleven Years (1947-58)

Pakistan won independence under extremely difficult conditions. The next task was setting up of a new state.

There was no administrative structure. Riots, refugee's problem and economic pressures were challenging for the new state.

Negative attitude from Indian government and war on Kashmir created problems in relations with India.

The Government of India Act 1935 was adopted as the first Interim Constitution. Quaid-i-Azam Mohammad Ali Jinnah became the first Governor General (GG) of Pakistan and Liaquat Ali Khan, the first Prime Minister (PM).

Governor Generals:

1. M. A. Jinnah August Sept. 1947-Sept. 1948
2. Kh. Nazimuddin Sept. 1948-Oct 1951
3. Ghulam Mohammad Oct. 1951-Oct. 1955
4. Iskander Mirza Oct. 1955-March 1956

President:

1. Iskander Mirza March 1956-Oct. 1958

Prime Ministers:

1. Liaquat Ali Khan August 1947-Oct 1951
2. Kh. Nazimuddin Oct. 1951-April 1953
3. Muhammad Ali Bogra
   (i) April 1953-Oct 1954 Oct.
   (ii) 1954-August 1955
4. Ch. Muhammad Ali August 1955-Sept 1956
5. H.S. Suhrawardy Sept. 1956-Oct 1957
6. I.I. Chundrigar Oct. 1957-Dec 1957
7. Firoz Khan Noon Dec. 1957-Oct. 1958

Major Issues

- Constitution-making
- Elections at the provincial level
  1. Punjab, NWFP 1951
  2. Sindh 1953
  3. East Bengal 1954
- 1st Constituent Assembly (CA) was dissolved and 2nd CA was constituted in 1955.
- One Unit Scheme October 1955
- Economic management, Agriculture, Industrialization and Education was a question dealt in 1st Five Year Plan.
- Political Instability was there. Weak and short-lived governments shattered the whole political system.

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- Decline of Political Parties created bad name for politicians.
- Instability was also there at the provincial level.

2: Second Phase (1958-69)
Martial Law remained imposed from October 1958 to June 1962. Constitutional Rule was restored on June 1962 and remained till the 2nd Martial Law on March 1969.
Ayub Khan took over as Chief Martial Law Administrator (CMLA) and the President. He got himself elected through referendum in 1960 and re-elected in January 1965 through presidential elections.

Important Policy Measures
Important Policy Measures taken by the Ayub government were:

Administrative Reforms which included removal of unwanted officials, some 1662 in number.
Restrictions on political activities. Political leaders were stopped from taking part in politics for 6 years on the charge of corruption and other charges under the law named EBDO.
Economic planning was done for industrial development and green Revolution.
Educational Reforms
Constitution was introduced.

Downfall of Ayub Khan:
Indo-Pakistan war started and at the end of war Tashkand Pact was signed with India. People were not satisfied with this pact. They also resented the election results of 1965. Fruits of economic development were not distributed at masses level. Wealth of nation was concentrated in a few hands. This brought people to agitation and public demand resulted in resignation of the president.

3: Third Phase (1969-71)
Ayub Khan handed over power to Army Chief Yahya Khan. He imposed Martial Law and 1962 Constitution was abrogated. He took some immediate steps:

- Removal of officers 303
- Provinces Revived: March 30, 1970
- Abolition of Parity

Legal Framework Order (LFO) as interim law issued in March 1970 which provided basic principles for:

- Constitution making
- Rules and regulations for elections
- Seats in the assemblies
- National Assembly 313 (300 plus 13 women seats)
  For East Pak 162 plus 7
  West Pak 138 plus 6

General Elections
General Elections were held in December 1970. Election Results were:

Awami League	160 general seats
Pakistan People's Party	81 general seats

Transfer of power became a major problem. Failure of dialogue for transfer of Power among three top leaders led to confrontation and military action on March 25, 1971. It ultimately resulted in Civil war and alienation of East Pakistan.
India played a very negative role. It attacked on East Pakistan and India-Pakistan war started which ended with the separation of East Pakistan.

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Lecture 23

Political History (1972-2003)

1. 1972-1977
2. 1977-1985
3. 1985-1999
4. 1999-2002
5. 2002 onwards

1: 1972-1977:
Z. A. Bhutto assumed power on December 20, 1971. First he became President of Pakistan and also the first civilian Chief Marshal Law Administrator.

Major Policies
The first task was the Constitution making. In 1972 Interim Constitution was adopted and then the Parliament of Pakistan unanimously adopted 1973 Constitution.
The major policy of Mr. Bhutto was Nationalisation. His government nationalised:

1. Emerald mines in Swat
2. Key industries like Iron & Steel, Basic metals, heavy engineering, heavy electrical, Motor Vehicles & Tractors, Heavy & Basic Chemicals, Petro-Chemicals, Cement, Gas, Oil Refinery etc.
3. Life Insurance in 1972
4. Banks in 1974
5. Schools and Colleges in 1972. New University Ordinance was issued in 1973.
6. Managing and sub-agencies were abolished.

Labour Policy
A new Labour Policy was announced in which more rights and concessions were given to the working classes.

Health Policy
Under new Health Policy cheap medicine and facilities were promised to the masses.

Administrative Reforms
Administrative Reforms were introduced to eradicate corruption in the country. Hundreds of civil servants were removed on the charge of corruption.

Problems of Reforms:
Reforms were good in outlook but as their results were not according to the expectations of the masses. Discontentment took the place of initial optimism.

1977 Elections and Agitation:
As a result of elections of 1977 PPP won the elections. But joint opposition blamed a mass rigging in the election results. They demanded fresh elections. Bhutto initially was stubborn but later showed inclination to compromise but history has taken a U-turn. As he refused to negotiate the elected majority party in 1971, now opposition refused to compromise and took the case to the streets. Urban shopkeepers, businessmen, students, women and even the intelligentsia joined hands against the government. The result was the third Martial Law and end of democracy.

2: 1977-1985:
Chief of Army Staff General Mohammad Zia-ul-Haq took over and imposed Martial Law. He suspended constitution. It was the longest military Rule in the history of Pakistan. To justify his rule Zia-ul-Haq presented his Agenda about:

- Effective Administration
- Islamisation
- Return to Democracy

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Major Policies:
Zia-ul-Haq promised Elections first within 90 days, and then extended this period after the reforms. These reforms included:

Accountability of the ousted regime;
Restrictions imposed on political activities and press.

Islamisation:
In his way of Islamisation of the system he introduced many steps for forging cooperation of some Islamic groups.
He also introduced Constitutional and legal changes to emphasis on Islamic values in the society. He established:

- Shariat benches established in 1979;
- Federal Shariat Court was established in 1981;
- Introduced Islamic Punishments;

Amputation of hands, Stoning to death and lashing etc;

- Interest free banking initiated in 1981 on the principle of profit & loss sharing;
- Zakat deducted on saving accounts & investments;
- Ushar was imposed on agricultural produce in 1983;
- New education Policy with Islamic character of syllabus along with Pakistan Studies and Islamiat compulsory for all the classes up to graduation.
- Islamisation of Mass media;
- Prayers break was introduced in offices, and Mohaallah *Salat* Committees were formed to observe the compliance of Prayer Ordinance;
- Pakistan Bat-ul-Mall was established.

Return to democracy
In order to return to democracy Zia-ul-Haq took the following measure:

1. Local Bodies elections, 1979.
2. Referendum was held to elect Zia-ul-Haq as president for next five years on December 1984.
3. Then he held elections on non-party basis on February 1985.
4. New National Assembly (NA) was formed and a Civilian government was installed.
5. Revival of the Constitution Order March 1985 with most controversial 8th Constitutional Amendment was introduced.
6. Withdrawal of martial law, Dec 30, 1985.

3: 1985-1999 Civilian Rule
Democracy was restored but no civilian government could complete its tenure of five years and became the victim of 58-2B of 8th amendment by virtue of that President can dissolve NA and dismiss the elected government.

1. Junejo March 1985-May 1988
2. Benazir Bhutto November 1988-Aug 1990
3. Nawaz Sharif October 1990-July 1993
4. Benazir Bhutto October 1993-November 1996
5. Nawaz Sharif February 1997-October 1999

Interim Prime Ministers appointed for holding fair elections were

1. Ghulam Mustafa Jatoi: August-November 1990
2. Bulkh Sher Mazari: April-May 1993
3. Dr. Moeen Qureshi: July-October 1993
4. Malik Meraj Khalid: November 1996-February 1997

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Civilian government adopted policies for the welfare and betterment of the people but their effects were compromised due to several reasons:

- Problem of keeping coalitions intact;
- Weak political parties, which weakened the government;
- Greater confrontation;
- Complaints of corruption and misuse of state resources.

4: 1999-2002:

In 1999 again Military Rule was imposed against the civilian government's attempt to concentrate power in the office of Prime Minister. Nawaz government introduced political and constitutional changes to have a complete control on all branches of the government.

Nawaz government's attempt to remove the Army Chief, while he was out of the country and returning from his visit to Sri Lanka, proved counter productive. General Musharraf took over as the Chief Executive of the country and suspended the constitution. Martial law was not declared. No military courts were established. Political and press freedoms remained intact.

Political Priorities:

General Musharraf announced his Political Priorities:

- Rebuild national confidence and morale;
- Strengthening federation;
- Remove inter provincial disharmony;
- Restore national cohesion;
- Revival of the economy and restoration of investor's confidence;
- Improving Law and order situation and dispensation of Justice;
- Depoliticise the state institutions and devolution of power;
- Swift and across the board accountability.

General Musharraf designed the following policies to achieve these goals:

- Accountability and return of looted wealth of the state;
- Revival of the economy through increasing Foreign exchange reserves and reducing International debt burden through rescheduling;
- Poverty Reduction and social uplift.

General Musharraf introduced New Local Bodies System, delegation of power to the District Government.

In the process of Return to Democracy he held:

1. Referendum, April 2002.
2. Introduced Legal Framework Order (LFO).
3. Held General Elections of National And Provincial Assemblies on 10th Oct 2002.
4. Revival of the Constitution.
5. Civilian Governments formed in the provinces and the Centre.

5: Civilian Rule Established

In the new set up Musharraf is President in uniform. Mir Zafer-Ullah-Khan Jamali was the head of a coalition government. In three provinces there are governments of Muslim League (Q) and in NWFP there is the government of MMA working successfully.

Let's hope for the gradual consolidation of democratic rule.

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Lecture 24

Geography, Land, Boundaries and Neighborhoods

1. Geography and the People
2. Boundaries
3. Neighborhoods

1: Geography and the People

Pakistan was comprised of two wings when it came into existence on August 14, 1947. East Pakistan separated in 1971. Post-1971 or present day Pakistan is located in the Northwestern part of South Asian Sub-continent.

It has maintained its distinctiveness in the Sub-continent. Indus Valley Civilization is as old as 2500-1600 BC. The archeological heritage of Harappa and Mohenjo-Daro are clear evidence of this fact. Arians first came to this land followed by Islam and Muslims from Central Asia and Afghanistan. Muslim rule continued about one thousand years. Then the downfall of Muslim empire paved the way for British Rule, which ended with the formation of two independent states of India and Pakistan.

Location:

Pakistan is located between 24_37 degrees North latitude 61_75 degrees East longitude.

Territory:

Its area is 796,095 sq Kilometers.

	Territory (in thousand)	percentage
Balochistan	347.2	43.61
Punjab	205.3	25.81
Sindh	140.9	17.71
NWFP	74.6	9.4
FATA	27.2	3.4
Islamabad	0.9	0.1

Diversity in the nature of territory:

- North and Northwest: It includes Mountains of Himalayan and trans-Himalayan Ranges, Korakoram & Pamirs, which includes some of highest peaks like K2, Nanga Parbat etc.
- West: Baluchistan Plateau is about 1000 feet in elevation with dry mountains crossing it from northeast to the southwest. Here very little rainfall occurs.
- Indus Plains: Main agricultural region in the middle of the Indus valley.
- The Potohar Plateau is there in the East of upper Indus plains.
- In South East of Indus Plains there is Deserts Thal, Cholistan and Thar.

Climate:

Climate of Pakistan is diverse.

North, Northwestern Mountains are extremely cold in winter but mild in summer.

The Indus Plains are extremely hot in summer but cold and dry in winter.

Coastal regions are having temperate climate. There are some variations within each region.

Four Seasons:

Summer: May to September
Winter: November to February
Spring: March-April
Autumn: September-October

Rain:

It varies from region to region. The main rainy season is the summer i.e. Monsoon.

Population:

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Pakistan is having a large population. The growth rate recorded over 3 percent in the 1970s to early 1990s. Now declined due to a number of measures by the government but still it is higher as compare to the other countries of the region. Census is taken after every ten years.

1951, 1961, 1972, 1981, 1998

Year	Population In Million	Annual Growth Percent
1951	36.2	---
1961	46.2	2.80
1972	65.3	3.10
1981	84.3	3.06
1998	130.6	2.61

In 2006, the population is estimated to be over 160 million.

Important Features of the Population:

- More than 50 Percent population is under the age of 21. A large part of this population is dependent.
- Add to this people over 65 years.
- About 30 percent population lives in urban areas.
- Why migrations to urban areas: Education, jobs, facilities etc.
- Impact of urbanization: Poor civic conditions, education, health, housing, town planning etc.
- Provincial population.

Punjab 56-57 percent
Sind 23 percent
NWFP 14 percent
Baluchistan 5.3 percent

- Low literacy rate: Official literacy rate is 46 percent but functional literacy rate is even lower.
- Women literacy rate is much lower. In certain areas of Baluchistan women literacy is nominal to non-existent.
- Why population figures are important. For Planning and development, Socio-economic development and poverty alleviation etc.
- Social development indicators are poor in Pakistan. No ideal figure for population can be named. It depends upon the resources. High population is asset as well as a liability because we cannot feed them.
- Efforts to manage population are being done by the Government as well as by non-governmental organizations in the field of health care, family planning and education.

2: Boundaries:

Pakistan shares boundaries with four countries.

- China in the northeast: About 600 km long border in the Northern Areas. Silk Route is a major link for trade and traveling.
- Afghanistan: North and Northwest about 1200 miles. Durand Line was drawn on November 1893 as a border between the two neighbors.
- Iran in the West share about 590 miles border from Koh-i-Malik Siah to Gawadar.
- India in the East having a border about 1400 miles which was established in August 1947.
- We also face India on the LOC in Kashmir, the most troubled frontier having hardly any natural barriers, highly volatile and porous.
- South: Arabian Sea, Coastline 450 miles. Stretches from the Rann of Kutch Indian border to the Iranian border in the West.

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3: Neighborhoods:

Pakistan is located in strategically important region. It is the center of global interests. For all the big powers like China and Russia it is important. U.S maintains interests to keep an eye on both China and Russia.
It is on the gateway of Central Asian Muslim States through Afghanistan. On the other side of it is the outer region of the Gulf region having rich oil resources and economic wealth. Pakistan has close brotherly ties with these states. Now the pipelines of oil and gas are planning to be passed through Pakistan. It will be a new start of economic cooperation in the region.

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Lecture 25

Natural Resources, Agriculture

1: Natural Resources
- Mineral Resources
- Rivers and Canals
- Forests
- Animals

2: Agriculture

1: Natural Resources:

The resources endowed by the nature to the country and the people are called National Resources, e.g., Mineral resources, rivers, forests and animals. Agricultural lands hold key to development and prosperity of a country.

The rate of development and prosperity of a country depends on efforts to make use of it. Effective management and human efforts are needed to avail them. Modern technology is also required to make use of it.

Mineral Resources:

Pakistan is blessed with considerable mineral resources. Some of them are explored but much remains to be done for the search for more. Some important resources are:

- Iron Ore is used for industry, especially steel industry. It is found in limited quantity and low quality. Most of the required Iron ore is imported from abroad. Its deposits are found in Chitral, Chaghai, Kohat, Kurram Agency, Mardan, Hazara, Mianwali (Kalabagh) and DG Khan.
- Chromite: is used in preparing other metals, leather tanning, making of steel products, armament and stainless steel. The deposits of Chromite are found in Zoab (Muslim Bagh), Chaghai, Malakand, Mahmand, Waziristan, Fort Sandaman etc.
- Gypsum is used for plaster of Paris, Paints and Cement. It is found in Jhelum, Mianwali, DG Khan, Kohat and Loralai.
- Sulphur is used by chemical industry. Its deposits are found in Kalat, Khairpur, Mardan, and Jacobabad etc.
- Coal is used in power generation. It is basically used as fuel. It is not found in good quantity and quality. It is mostly found in Sindh (Thatta, Tharparkar, Manara) Balochistan (Deegari, Sharig, Soer, Khost, Maach, Hernai), Punjab (Makarwal, Dandot), NWFP (Cherat and Noshera).
- Oil: It is a major source of energy. It is mostly imported from Iran and Gulf states. Now some valuable reserves are found in Jhelum, Mianwali, Attock, Balkasar, Mial, Chakwal, and Dhodak.
- Gas: it is itself a source of energy and fuel, and also used as a source of power generation. It is found in Sui, Mari, Uch, Khairpur, Jacobabad etc. Now some new discoveries are also found.
- Uranium: It is the basic element for atomic power, indispensable for the defence. Its deposits are in DG Khan, Hazara and Kohat.

Rivers:

The river system of Pakistan is consisted of Indus and other associated rivers. We have a well-defined Canal system. The most important one is the Indus Basin project.

What we require is the proper management of water, its conservation, effective use, storage, dams and flood control. Water is dangerous if it is too much, it become a problem if it is too little. It is used for Agriculture where it is the backbone of agro-economy. It is also a cheapest source of hydroelectric Power generation.

Forests:

Normally 25 percent area of a country should be covered with forest. But in Pakistan it is only 4 to 5 percent.

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Some areas are not suitable for plantation like deserts and dry mountains. It is because of shortage of water and rainfall. Deforestation is also due to unplanned cutting of trees.

Advantages:
Forests have many advantages. They are helpful in improvement of weather. Protect against windstorms, help in slow melting of snow to stop floods. They add greenery, beauty and fresh air to the environment. Plants are source of food, medicine, timber, chemicals and fertilizers. They are the homes of animals, birds and insects. They are also used as fuel.

Animals:
Animals provide milk, meat, hide and skins, wool etc. They are also used for agriculture and transportation. They are a source of foreign exchange.
Their proper breeding requires planning and care. Animal husbandry and colleges of research are established to breed and cure useful species of animals. Department of Live Stock also provides Support System for raising animals both privately and through Government Projects. Government farms and military farms are also working for that purpose.

Fisheries:
It is also a source of food and income. Department of fisheries also encourage private farmers to invest in this field and add to personal and national wealth.

2: Agriculture
Pakistan is an agricultural country. More than 70 percent of its population lives in rural areas. Over 50 percent are directly engaged in farming or agro-based activities.

- Share of agriculture to GDP is 26 percent.
- In Punjab and Sindh plains are very large. There are irrigated farmlands.
- **Two major crops** are yielded in a year

(a) **RABI:** Sown in October-November and produce obtained in April-May. Important produces are Wheat, Gram, Oil seeds.
(b) **KHARIF:** Sown in May-June and produce is obtained in October-November. Important crops are Rice, Sugar Cane, Cotton etc.

- **Main crops:** Wheat, Rice, Cotton, Sugar Cane, Gram, Maize, Mustard, Tobacco, Oil seeds, Fruits and vegetables.
- **Land Reforms** are introduced from time to time by different governments: in 1959, 1972, and 1977. The aim was to reduce land holding and to strengthen the position of tenants. It was done for improving yield per acre and poverty alleviation in agriculture field.

Problems in Agriculture:
There are number of problems in our agriculture, for instance:

1. Outdated modes of cultivation, which cause low per acre yield.
2. Water Logging and Salinity.

Attention is being given to these since mid 1960.

3. Crop diseases are big problem. Technical support is being provided by Department of Agricultural. It helped to overcome the problem. Our inputs have problem of quality, which cause low prices in market. Other handicaps are low quality seeds, costly fertilizers, non-availability of electricity or oil for tube well etc.
4. Water related problem, sometimes it is too little, but sometimes it is too much. Cleaning of Canals is also necessary to provide water at the end of canal.
5. Credit facilities are also problematic.
6. Access to market is difficult.
7. Availability of reasonable price should be ensured for the welfare of the farmers and high yield of crop.

Agriculture and Development Plans:

- Research is done for the development of high yield seeds giving better output. Information and guidance is being provided to the common farmer to enjoy the fruits of

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the advance research in the field of agriculture. University education is developed in various parts of Pakistan especially in Faisalabad and Jamshoro. Emphasis is laid on modern technology in practical field.

- Communication and transportation facilities are increased.
- Government ensures the payment to the farmers for their produce immediately.

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Lecture 26

Industrial Development

1. Importance
2. Historical Overview
3. Major Industries
4. Future Directions

1: Importance:

Industrialization is the key to economic development and overall prosperity. Without it no economy can grow. It is the backbone of a strong and stable economy. It is the basis of modernization and development of the state.

Industrialization helps the international standing of a state. Industry and technology go together. It enhances trade and save foreign exchange. Industrialization brings self-reliance for a nation.

It is also important for agriculture. Agriculture provides raw materials and so input for industry and output is the finished goods.

Industrialization improves the quality of life, help in Poverty reduction, and provide employment facilities.

Industrialization has close relevance with the defence and security of the country.

2: Historical Overview:

In 1947 Pakistan inherited very small industrial infrastructure. Only about 4 percent of India's industry was there in areas of Pakistan. It was insufficient to meet the needs of the day-to-day life. Initially sugar mills, biscuit factories, cigarettes factories, oil mill, cement units, match factory, steel rolling, and glass work factories were set up.

Priorities set out in the early years:

1. Industry would be based on indigenous raw materials.
2. Consumer goods should be manufactured to meet the immediate needs of the people.
3. Private initiative to be encouraged.
4. The state to be involved in the process through: facilitation and help, financial help, tax incentives, protective tariffs etc. It also played direct role to set up industry.
5. Training and research facilities would be provided.
6. Industrial Development Board was formed in 1948. All Five Years Plans from 1955, 1960, 1965-70 paid greater emphasis on private sector and rapid industrialization. It added to aggregate economic growth.

Institutional Arrangements:

- Pakistan Industrial Development Corporation (PIDC) was established under a law in 1950. It encouraged the setting up of industry that was less attractive for the private sector. Initially 15 industries were identified.
- Industrial Development Bank of Pakistan (IDBP) was set up in 1961. It provided loan facilities for industrial projects at concessional rates to middle and small investors.
- PICIC: Pak Industrial Credit & Investment Corporation was established to give loans and credit facilities, including foreign exchange facility, for setting up industry. It also launched investment schemes.
- Investment Promotion Bureau, 1959 was formed for the promotion of domestic and foreign investment and to provide advice and guidance to investors and provision of necessary help to them.
- Other institutions like ICP, NDFC, NIT were established.
- External financial and technical support was provided both bilateral and multilateral by World Bank, IMF, and Colombo Plan etc.

Nationalisation of the Seventies:

New democratic government of PPP after assuming power adopted the policy of nationalisation. Ten basic industries were nationalised. Later some others were also taken over to have a greater state role. Initial euphoria ended and industrial output suffered. It also caused flight of capital from the country.

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Since the early 1990s:

The policy of the governments in 1990s changed. Since 1990s all the governments including that of PPP followed the policy of denationalisation and privatisation. They are promoting free economy, foreign investment, non-governmental initiatives, Foreign Direct Investment (FDI) and investment from Pakistanis settled outside the country.

3: Major Industries:

- **Textiles:** It is major industry based on agriculture, heavy textile industry caters to domestic and external market. Major Centres are Faisalabad, Multan, Lahore and Karachi. Woollen Cloth is manufactured in Karachi, Lawrencepur, Harnai, Quaidabad, Multan and Bannu.
- **Sugar:** Pakistan has made tremendous progress in this industry. It is a food item; agro based industry, located in Sindh, Punjab and Sindh.
- **Cement:** This industry has gone through major expansion. Over 20 factories are established in the pubic and private sectors which cater to Pakistani needs. Still it is imported in limited quantity. Most of the sites are in Dandot, Daud Khel, Wah, Rori and Karachi.
- **Vegetable Ghee:** Cooking oil is a major food item. There is much expansion over the years both in private and public sectors. Now we are self sufficient, although some raw material for making cooking oil is imported. About 60 units are in Sindh, Punjab and NWFP.
- **Iron and Steel:** Steel Mill near Karachi was set up with the help of the former Soviet Union. The major problem was that of raw material. The iron ore found in Pakistan is very poor in quality. Steel rolling units and iron related factories exist in different parts of Pakistan.
- **Paper:** Major paper industry was in East Pakistan, which was lost in 1971. We had to face shortage of locally made paper after 1971. Now this industry is located in Noshera, Charsada, Gujranwala, Lahore, and Gharo. Some quality paper has to be imported.
- **Machine, tools:** Heavy Mechanical Complex (HMC) Texla serve this purpose. HMC was set up with Chinese cooperation.
- Machinery, industrial equipment, engineering goods, engines, machinery for sugar, cement, and fertilizer industry is prepared here.
- **Defence Industry:** Wah Ordnance Complex is established for weapons and armaments. HMC is making Tank Rebuild Factory. Kamara Aircraft Rebuild factory overhaul F-6 and Mirage. It is also manufacturing Maashak, K-8.
- **Other Important Industry:**

Fertilizer, Tobacco and cigarettes, Oil Refineries, Cars and Tractors production, Shipbuilding: Karachi Shipyard, Ship breaking.

- **Cottage Industry:**

Industries established on small scale, involving a household or small number of people, use of limited resources, having less investment are called small or cottage industries e. g., Carpets, sports goods, toys, power or handlooms, handicraft etc.

4: Future Directions:

There is no escape from industrialization. It is a must for prosperity and development.

We are having Mixed economy with an emphasis on private initiative. Privatisation and Foreign investment need appropriate conditions: political and economic stability, infrastructure, less bottle necks, corruption issue, low interest loans and state support and above all security of investment.

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Lecture 27

Education in Pakistan

Major Areas Covered:

1. Importance
2. Educational Issues
3. Kinds of Education

1: Importance of Education:

Education is a key to development for individual, society and state. It shapes natural qualities and talents of the individuals. It has positive relevance to family and society. It also confers citizens' confidence to deal with environment, a sense of purpose. Education provides a goal orientation and is helpful to others by educating them.

Education provides entitlement to job and professions. It gives effective tanning to the citizens about their rights and duties. It plays a more constructive role in character building of the person and in turn society as a whole.

Education should be integrated to nation building and should be able to transmit the primary values. Education should be responsible for the formation of attitude.

It should transmit socialization among individuals.

Education system is designed according to the ideology of the state and its identity. Education is the indicator of socio-economic development. For the real progress proper educational facilities should be provided. Literacy rate should be enhanced. Trained and qualified human power can make a nation success. Only such educated people can better be equipped to deal with changing situations and challenges of the time. Education provides better understanding of international environment that affects all of us. Islam asks Muslims to get education. Other religions also value education.

2: Educational Issues:

From historical perspective Pakistan has made commendable efforts for spreading education since independence. Funding, facilities and free primary education was introduced to enhance student enrolment. Following steps were taken for uplift of education:

- It made integral to development planning in all Five Year Plans and Yearly Plans.
- Education Commission was established and new Education policies were introduced.
- Critical evaluation points out serious issues requiring immediate attention for enabling education to achieve its goals.

Problem of Resources:

Resource allocation for education is far from satisfactory. It is much less than what a large number of countries spend on education, especially those having developed after World War II. Most of these allocations go to salaries and administration.

Fewer amounts are given for infrastructure, facilities of research and development.

Low Literacy:

In Pakistan literacy rate is 46 per cent. While meaningful literacy is far less. Female literacy is lower. In rural areas literacy is much low.

Enrolment and Retention:

All Children are not enrolled in schools. Drop out at the primary and high school level is very high. The incentive to send children to the school is to retain them there. Poverty and lack of appreciation cause drop out. Not enough schools with proper facilities. Number of schools exist on papers only i.e., Ghost schools.

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Teachers related issues:
Shortage of qualified teachers at the lower levels is main cause of less interest of young students towards education. Student-teacher ratio is very high in Pakistan. So the teacher cannot properly treat students. Teachers are not given any incentives for devotion to the profession. Salary and other facilities especially at the lower levels are very disappointing. Training and refresher courses are also inadequate. New techniques of teaching and facilities needed for good teaching should be provided to the teachers.

Examination System:
Examination System remained a problematic issue in Pakistan. How to judge the performance of students is a difficult question. Instead of comprehension and depth of knowledge emphasis is laid on test of memory. Learning is geared to passing the examination. Some people work only at the end of the year and get good marks due to flaw in the system. Some of they use unfair means. Students have were little knowledge of how the papers are actually graded. This becomes a serious problem at the higher levels. Still there is a debate that whether Annual system or Semester system should be adopted.

Politicization:
Student groups have political links with outside groups. Political parties have their sub units in educational institutions, which result in use of violence and threats. This also damages the educational environment.

3: Kinds of Education:

Primary:
From class 1 to 5 years is primary stage. Mosque schools are also working on this level. Efforts are being made to make it universal.

Middle Level:
It is from class 6 to 8.

Secondary:
It is from class 9 to 10.

Higher Secondary:
It is from class 11 to 12.

Degree Level:
It is a university level education for 2 or 3 years for the award of bachelor degree of Science/ Arts.

University, Post Graduate Level:
M. A., M.Sc., M.Phil. and Ph. D. Specialized diplomas and programs are also offered at this level. Colleges are also teaching at Postgraduate level. Now some Colleges are given university status.

Professional:
Professional educational fields are Medical, Dentistry, Engineering, Business and Commerce are Technical and professional degrees.

Adult Education:
For adults who could not get education in their early years adult education is introduced for them.

Distance Education:

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People do not go to an institution but stay home and get education. This method is useful for people in service and for those living in remote areas. This is a method of Improvement of qualification without actually going to an institution.
It is a Flexible system in which Lectures and tutorial system are used through media.
Examples are:

- Allama Iqbal Open University.
- Virtual University: TV and Internet.

Privatization of Education:
Schools (English medium), Colleges and Universities are introduced in private sector. Some of them are imparting some good quality education but very expensive.

Military Foundations:

- Medical and IT education
- National University of Science and Technology
- Bharia University
- Air Force University

Modern Technology and Education:
Technology education means education of IT, Computers- software and hardware. IT and regular education, Access to knowledge and technical education.

Concluding Remarks:
Education in Pakistan could not play a proper role. That's why Pakistan is much behind of some of the developing countries. The only way to meet the challenges of the time is to provide technical education at all levels. For that purpose spending on education should be raised. Primary education should be universal and women education should be enhanced. Only meaningful education can fulfill the demands of development.

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Lecture 28

Foreign Policy of Pakistan

Features & Highlights
No state can live in isolation. There is a need of interaction. The linkages between internal & external environment are very necessary to create harmonious relations among the peoples living in the different regions. The national interests and identity, economic reasons, peace and stability are the motives of foreign policy of a country. Pakistan functions at different levels: Bilateral and Multilateral. It is also a member of the UN and other international organizations.

Features of Foreign Policy:
The main aims of features of 'Foreign Policy' are protection of- independence, Sovereignty and Territorial Integrity. Primary concern is the SECURITY through diplomacy and military security arrangements. National mobilization regarding Pakistan's security vis-à-vis India influenced foreign policy options. Strong defense is indispensable for survival.

Relations with All States:
Pakistan has good relations with almost all the nations of the world on the basis of mutuality of interests, cordiality, peace and non-interference in internal affairs. Pakistan believes that problems to be resolved peacefully.

Relations with Major Powers:
The nature of relations with major powers has varied.
United States
Pakistan-US relations have been generally friendly but problems developed from time to time on nuclear issue, arms sales, Kashmir etc.
China
China proved to be a reliable and consistent friend over the periods of decades. Pakistan supported China diplomatically in the UN and the Outside. Both the countries have developed close relations in all the areas including economic development and industrialization, defense, science and technology, environment and trade.
Russia
Pakistan has working relations with Russia but frequent problems remained unsolved during the period of Cold War. Russia remained favorable to India at the cost of its relations with Pakistan. On Kashmir issue, her attitude has been pro India.
Some economic relations strengthened the bilateral relations when Russia provided economic and technological assistance to Pakistan in establishing steel mill in Karachi. In post-Cold War era, Pakistan is trying to normalize the relations. The recent tour of President Musharraf is a step towards this goal.

Economic Issues, Trade, Investment:
Greater importance is attributed to the issues like economic development, direct foreign investment and trade relations in international relations. Foreign policy is linked with foreign assistance from the World Bank, IMF, Asian Development Bank, International Development Bank and other sources. Economic relations are both bilateral and multi-lateral. Technology, trade, access to market and investment are keys to the cordial relations between the two countries.
Pakistan is also trying to establish its relations with other countries on the same footings.

Muslim States:
Being Islamic country, Pakistan has been always in search of good relations with the Muslim countries. It has been a central point in the ideology of Pakistan even before Independence.

Solidarity with the Developing States:

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Pakistan had been concerned with the issues and problems of the states of Asia, Africa and Latin America. As it is developing countries it is well aware of the problems of underdevelopment, poverty, disease, famine, civil strife and border disputes, refugees and drug addiction.

Pakistan always emphasized on the UN and developed countries to help them. Peace cannot be maintained if humanity is suffering.

Cooperation among developing countries in the areas of economic and technical assistance, trade and diplomacy support to these causes should be enhanced.

United Nations:

Pakistan joined the UN on Sept. 30, 1947. It has commitment to the UN Charter and active in UN bodies. Pakistan has enjoyed the Security Council membership for 6 times. It has been a part of UN Peace-Keeping Missions all over the world.

Anti-Colonialism, Right of Self Determination:

As we have been suffering from colonial rule we always support decolonization for Asia and Africa. Pakistan always opposed racial discrimination in Rhodesia (Zimbabwe), South Africa, Namibia etc. It always supported right of self determination for Kashmir, Palestine, Afghanistan and others.

Arms Control:

Pakistan believes that arms races to be controlled, resources to be used for human development. It has spoken for this cause in the UN and the outside. It opposed arms race not only at the superpower level but also at the regional and bilateral levels both for conventional and non conventional arms. It stressed that the root causes of arms races should be curtailed.

Nuclear Policy:

Pakistan has been champion of peaceful uses of nuclear technology. Pakistan avoided nuclear explosions despite having the knowledge and capability of processing Uranium, Plutonium. It was only for the sake of deterrence and reaction to India's nuclear explosions.

Relations with India:

The most problematic area of Pakistan's foreign policy is the relationship with India. The relations have been strained since independence in 1947. There were periods of normal relations but generally it remained troubled marked with distrust and conflict. This bitterness caused three major wars in 1947-48, 1965 and 1971. Limited conflicts and trouble at LoC (Line of Control) along with propaganda war are common practices. Tension escalated when the troops on the border from both sides faced each other throughout 2002. India was not ready to open dialogue. But now there is a hope of bilateral dialogue on Kashmir and other issues. It is the only way to bring prosperity and peace for 1.2 billion people of South Asia.

Kashmir:

Main source of conflict between India and Pakistan is Kashmir dispute. It should be resolved under the UN Resolutions. But India has declared it as integral part of it. Instead of having plebiscite, she has blamed Pakistan for initiating insurgency in Kashmir since 1989. India claims that it is engineered by Pakistan and equates this with terrorism.

Control of Terrorism:

Pakistan is an active participant in global efforts to contain terrorism. Pakistan withdrew support to Taliban and joined hands with the international community. She also acted against terrorists within Pakistan, as it was victim of terrorism & sectarianism.

Pakistan believes that to eradicate terrorism first the root causes of the problem should be removed.

Concluding Remarks:

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Pakistan has been an active member of the international community. It has been balancing the diverse pressures through diplomacy, engagement and compromises for the betterment of humanity.

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Lecture 29

Pakistan and the Muslim World

Foundations:
The Muslims of the sub-continent have deep-rooted affiliation with the Islamic countries on the basis of religion. They demonstrated this zeal of brotherhood on many occasions. From the days of Pakistan movement, Muslims of India followed the traditional policy with the Muslim World. Pan-Islamism and Islamic values were the strongest motives behind the demand of a separate Muslim state. So after the partition, they always preferred close bilateral relations with the Muslim countries.
The principles of policy in all the constitutions carry special attachment for Muslims and their heritage. The love for Muslim brotherhood continued during and after the independence.

Support for Independence:
Pakistan rendered full moral support for the independence of Indonesia, Tunis, Morocco, Algeria, Libya, Sudan and Eritrea.

Palestine:
Pakistan, being a Muslim state, always sided with the national rights of the Palestinian people. It strongly supported the independent Palestinian state. Sharing grievous concern over the atrocities inflicted on the Muslims, it condemned the Israeli policies.

Organization of Islamic Conference:
Organization of Islamic Conference is the largest Muslim forum in the world. Pakistan was among the 51 Muslim nations which attended the inaugural session in Rabat (1969). Its second conference was held at Lahore in 1974. Pakistani desired to make it an effective forum to address the political, economic, technical, scientific matters. The OIC always supported Pakistan on Kashmir.

RCD and ECO:
Pakistan, Iran and Turkey signed Regional Cooperation Development in July 1964. It worked for economic development till 1985 when it was renamed as ECO. Later on, Afghanistan and five Central Asian Republics, Azerbaijan, Turkmenistan, Uzbekistan, Tajikistan, Kyrgyzstan, Kazakhstan joined it.

Muslim World:

Pakistan has good relations with all the Muslim countries.

Saudi Arabia:
Saudi Arabia being sacred country is a centre of the Muslim 'Ummah'. Both the
Counties have conformity on major issues including Kashmir. The Saudi cooperation for the OIC and wars with India is unprecedented.

UAE, Kuwait and other Gulf States:
These countries and States have close and cordial relations with Pakistan. The ruling families make official and personal visits. The new era of economic relations has set in after the Gawadar port was built.

Iran:
Iran is a neighboring state with long historical and cultural ties. Iran was the first that recognized Pakistan. Iran's King was also the first head of state who visited Pakistan. Both had joint arrangements in regard to CENTO, RCD, and ECO. Iran supported Pakistan in the wars with India. It stressed on liberty of the people of Jammu and Kashmir. Pakistan welcomed the Iranian

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Revolution of February 1979. In March 1997 President Rafsanjani and in December 2002, Khatami visited Pakistan.

Turkey:
Turkey is another country with a long history of close and cordial relations with Pakistan. Both have great contribution in the multilateral arrangements of CENTO, RCD, ECO, etc.

Egypt:
Egypt under Nasser had some reservations due to Pakistan's ties with the West. Pakistan supported Egypt when it was attacked by Israel in 1956, 1967, 1973. The relations began to improve since 1967 and especially after the death of Nasser in 1970.

Libya:
Col. Qazzafi has been a great well wisher and supporter of Pakistan. In American air raids in 1986, Pakistan condemned American attack.

Jordan:
Jordan is another example of cordiality. King Hussain had special regard for Pakistan. He supported us on India-Pakistan issues. King Abdullah continued with this tradition. Both have military relationship, trade and diplomatic exchanges.

Afghanistan:
Afghanistan is a neighboring state. It sided with the 'Pakhtunistan' issue and created problems for Pakistan. The Soviet military intervention in Afghanistan gave birth to the Mujahideen groups, Taliban. The Sept 11, 2001 incident in America concluded major changes in the world diplomacy. After Taliban, Karzai government took responsibility of Afghanistan's reconstruction.

Bangladesh:
Bangladesh was East Pakistan but the internal instability and external conspiracies gave birth to Bangladesh. Pakistan had initially bitter relations but recognized it in 1974 that set in the normalization of relations. Both worked together in SAARC, OIC.

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Lecture 30

Course Review

This course of Pakistan Studies is aiming at to provide some basic data and information for updating our knowledge and to provide a better understanding of the past and the present with the objective of exploring prospects for the future.

Major Areas Covered:

1. Ideology of Pakistan
2. Freedom Movement
3. The New State, Constitutions and Political History
4. Basic Data on Pakistan
5. Foreign Policy

1: Ideology of Pakistan:

What is an Ideology? It is a set of BELIEFS, VALUES & IDEALS a group and a nation subscribes to ingrained in the social consciousness of the people over time. It provides:

1. Principles, Ideals, Vision for the future
2. Review of existing political, social and economic arrangements.
3. A consciousness based on its principles
4. A commitment and a sense of direction
5. Legitimization and De-legitimization
6. Leadership's role

Ideology of Pakistan is actually Two-Nation Theory, i.e., Muslims possess a distinct Socio-Political and Cultural Identity and are a separate NATION. This sentiment was provided and buttressed by ISLAM and its WORLDVIEW. Islam plays a CORE and CENTRAL role in creating this consciousness. Other factors like history, economy and political experience were also there. In India there was a gradual evolution of this consciousness among the Muslims.

2: Freedom Movement:

Its study is important to understand why Muslim Identity acquired political salience. Why did the Muslims demand a separate state?
The reasons were:

- Muslim Political experience in India during 1857-1947 played vital role.
- Changed political environment under the British created a new situation
- Colonial Rule
- New Elite with Modern Education having Conscious of Rights and Interests.
- Competition with the majority community.
- Initial demands of the Indian Muslims were safeguards against encroachment of majority community, Constitutional Guarantees, a Federation of Provinces.

During the course of Indian Politics important topics covered were:

- Lucknow Pact
- Delhi Muslim Proposals
- Jinnah's 14 Points
- Roundtable Conferences.

When the Muslims demanded a separate state, a number of factors were responsible for that demand:

- Role of Nehru Report

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- Provincial Ministries
- The Cabinet Mission Plan

3: New State, Political History and Constitution:
We started with the problems in setting up the new state and Constitution making. Issues were structure of federation, representation, language, electoral system, Islamic state, and parliamentary or presidential system.
Then we studied History of Constitution making:

- Workings of two Constituent Assemblies.
- One Unit Scheme
- Constitution made in Feb 1956
- Constitution of 1962, 1973
- Features of the Constitutions
- Experiment with different systems, parliamentary and presidential.
- Political History: 1947-1971 and 1972-to the Present.

4: Basic Data and Information:
Then we shared some information about:

- Geography, Physical Features, Boundaries and Neighborhoods of Pakistan,
- Natural Resources, Agriculture
- Industrialization
- Education.

These factors influence domestic Choices, policies, status and interaction with other states i.e. boundaries & neighborhoods. Their study is vital for policy makers.

5: Foreign Policy:
This chapter discusses the framework of Foreign Policy and Relations with the Muslim States. The aims of Foreign Policy are:

- National Interest
- Independence, Sovereignty
- Friendship with all on the basis of Sovereign equality, Shared interests,
- Mutual benefits, Non-interference.
- Peaceful resolution of conflicts.
- Faith in the UN Charter

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